

TABLE OF CONTENTS

PART I - INTRODUCTION	2
RULE 1 - PREAMBLE	2
RULE 2 – GENERAL PRINCIPLES	4
RULE 3 – INTERPRETATION	7
PART II –RULES GOVERNING THE PARTY ELECTIONS PROCESS	10
RULE 4 - NOMINATION AND ELECTION BOARD (NEB).....	10
RULE 5 - NOMINATIONS AND ELECTIONS OFFICIALS	13
RULE 6 – NOMINATIONS AND CANDIDATES SELECTIONS COMMITTEE.....	14
RULE 7 – ELIGIBILITY FOR PARTY OFFICIALS POSITIONS.....	15
RULE 8 - NOMINATION FEES FOR CANDIDATES FOR ELECTIVE POSITIONS	18
RULE 9 - CONDUCT OF ELECTIONS FOR PARTY OFFICIALS	22
PART III - RULES ON THE NOMINATION PROCEDURES AND PARTY PRIMARIES	25
RULE 10 – NOMINATIONS PETITION FORMS	25
RULE 11 - DECLARATION OF CANDIDACY	26
RULE 12 - WITHDRAWAL PROCEDURE OF A CANDIDATE.....	28
RULE 13 - REGISTRATION FOR WRITE-IN CANDIDATES.....	29
RULE 14 – CALL FOR NOMINATIONS AND THE CONDUCT OF PARTY PRIMARIES.....	30
RULE 15 - VETTING AND INTERVIEWING OF PARTY AND CIVIC CANDIDATES.....	32
RULE 16 – NOMINATION OF PARTY LIST MEMBERS	33
PART IV - RULES ON VOTING, RANKING OF CANDIDATES, CAMPAIGNS AND DISPUTE RESOLUTION	41
RULE 17 – VOTING METHODS FOR CANDIDATE SELECTION.....	41
RULE 18 – PROCEDURES FOR VOTING, AND ISSUANCE OF CERTIFICATES TO CANDIDATES	50
RULE 19 - GENERAL ELECTIONS AND CAMPAIGN PRINCIPLES	53
RULE 20 – INTERNAL DISPUTE RESOLUTION AND APPEALS.....	57

PART I - INTRODUCTION

RULE 1 - PREAMBLE

- 1.1 The **Shikana Frontliners for Unity Party** (hereinafter referred to as '**the party**' or '**SFUP**') is a Party whose overall mission is to continue building a democratic social order that honors the completeness of the law and the absolute consciousness of the Kenyan people while being guided by divinity that shows us the way of life so that everyone can speak the truth in love and act in peace and unity as those who are going to be judged according to their works.
- 1.2 The National Executive Council shall, formulate guidelines and regulations for the nomination of candidates for election into elective office and party offices at all levels. These rules may be cited as the "**Nomination and Election Rules and Procedures**" (hereinafter "the Rules") 2024.
- 1.3 Except as otherwise provided for by legal statutes, the provisions of these general rules relating to regular nominations, selections and elections, shall apply as nearly as may be, in the manner prescribed by the Party Constitution.
- 1.4 These rules are subject to the provisions of the Constitution of Kenya, 2010 and the Party Constitution and shall govern the nomination and selection of Party candidates in respect to Presidential, Gubernatorial, Parliamentary and County Assembly Elections and the Party National Officials, Public Office, Party Committee Members and Delegates to meetings and conventions. If there is a conflict between these Rules and any other party processes, the Party Constitution prevails insofar as the affairs related to the party are concerned.
- 1.5 The party shall undertake both party county and national election processes in an open and transparent manner by ensuring every member wherever possible has equal opportunity to participate in all elections so that the country can have an effective government through electing or appointing the best possible candidates of competent men and women who will then offer strong leadership and progressive change to good public services, implement the party manifesto and commitment to work together with everyone.
- 1.6 The party shall participate in all National and County Elections with the aim of winning and forming the next government of the Republic of Kenya and to promote the objectives of devolution through enhanced sound economic and fiscal policies that guarantees transparency, accountability, prudence and equitable usage of public resources as founded on constitutional order and the principles of good governance.
- 1.7 Whenever a General or By-election is called, there shall be a process of inviting and nominating potential Party Candidates for the elections which shall be done in accordance with the party constitution, Political Parties Act, the Elections Act, the Constitution of Kenya 2010 and all other applicable provisions of the law.
- 1.8 The Nominations and Elections Rules and Procedures provide for:
 - a) the Rules on the Nominations,
 - b) the Rules on the Candidates Selection,
 - c) the Rules on the Party Elections,
 - d) the Rules on the Conduct of Candidates,
 - e) the Rules on Listing of party-endorsed Candidates, and
 - f) the Rules on the Dispute Resolution and Appeals Tribunal;
- 1.9 These Rules shall apply to Party primaries and nominations to Party Lists and a copy of which shall be available and accessible to the members of the Party;
 - a) at the Party's head office and branch offices; and

b) on the Party's website.

1.10 Whenever, the method of amending the Nominations and Elections Rules and Procedures is been determined, such rules may be recommended by one of the following methods:

- a) by a caucus of its party members,
- b) by a National Delegates Convention,
- c) by its the Nations Governing Board,
- d) by its the Nations Executive Council,
- e) by a Strategic Policy Consultation and Rules Committee.

1.11 Potential candidates are advised to familiarize themselves with the Nomination and Elections Rules and Procedures, Code of Conduct, Pledge of Commitment and Party Right Agreement, Conduct of Election Policy, which are available at party offices or website, for purposes of compliance with all the party nominations and elections processes and other legal requirements.

1.12 In addition to the eligibility criteria provided herein, in respect of appointment, nominations and elections of any persons who is a member of the party and desires to occupy any party position shall be guided as follows;

- a) Every member of the party who has satisfied the requirements for membership under Article 8 and Article 9 of the party Constitution, shall qualify for nomination as a candidate and eligible to contest for any of the offices of the party or general elections;
- b) A person shall not be eligible to hold any office, or serve on any committee or as a delegate to any party meeting or be elected as a Chairperson, Secretary or Treasurer of a Sub- Branch, Branch and County or any National Official position unless he or she is a fully paid up and active member of the Party;
- c) The National Executive Council may for good reasons and in particularly exceptional circumstances, which it shall state, if requested, waive the requirement that a candidate or a person nominating a candidate in any Branch or Party or Elective Position must have been a financial member of the party for at least 12 months immediately prior to the signing of the nomination;
- d) With the exception of the Party Leader, the Deputy Leader, the Secretary General, and the Treasurer, who shall be appointed by the National Governing Board, and the Secretaries for Parliamentary Affairs, Secretary for Women Affairs, Secretary for Youth Affairs, Secretary for Disability Affairs, who shall be elected by the Elected Members Caucus, the election of other National Office Bearers and Party Organs Officials shall be conducted by the National Delegates Convention;
- e) The National Delegates, the Regional, the County, the Constituency and the Ward Conventions shall meet to elect the officers for the respective party positions at various levels of the party structure and formation as specified in the party constitution;
- f) All party officers at the Regional, County, Constituency, Ward and Community levels shall have similar operational powers and functions as their corresponding National officers, except where the party constitution states otherwise;
- g) All party officers shall perform their functions within the spirit and provisions of the Constitution of Kenya and the party Constitution or other relevant laws and shall ensure that they are further guided by the Party Ideologies, Principles, Objectives and Values;
- h) All party officers shall be elected based on geo-political considerations, professional expertise and the longevity of service to the party and any other criteria that may be deemed necessary for consideration from time to time;

- i) All party officials shall not hold more than one office in the Party unless otherwise given pre-existing exceptional circumstances, and ratified by the National Executive Council;
- j) Unless otherwise specified, all National, Regional, County, Constituency and Ward Officers of the party, shall hold office for a term of four (4) years and shall be eligible to re-contest and be re-elected at the relevant conventions or approval by appropriate National Governing Board where appropriate for a further term of four years and no more.
- k) Any Party Member holding a National, Regional, County or Branch or Sub-Branch office and elects to seek election at Parliamentary or County Assembly during the next General Elections shall be required to resign from office by a written notification to the National Executive Council at least 180 days before the scheduled date of party nominations provided that this provision shall not apply in the event of an abrupt dissolution of Parliament or the County Assembly or by- elections;
- l) No member may be nominated for elections to any office of the party in his or her absence unless he or She has indicated in writing that he or she is willing to serve in such office if elected or such requirements are waived by the National Executive Council.
- m) The NEC may by resolution provided for, appoint a person to fill any vacant position for the remainder of the subsisting term;
- n) Where only one candidate is nominated to an office or for one position at the close of the nominations, that candidate shall be declared the winner and duly elected to the office for which he/she was nominated;
- o) A person dissatisfied with the outcome of the elections may seek redress at the respective party organs in line with this constitution and all other applicable laws;
- p) In the event of a gap in these rules or where an office provided for has not been established, or an office provided for in the party Constitution has not been filled, or because of a procedural technicality, the NEC in consultation with the Supreme Advisory Committee shall have the power to make such arrangements to satisfy the spirit of the party Constitution.

1.13 These rules shall come into force on its promulgation by the Party Leader, or on the expiry of a period of fourteen days from the date of the approval and publication in the Gazette, all subject to ratification by the Office of the Registrar of Political Parties.

RULE 2 – GENERAL PRINCIPLES

2.1 The main objective in pursuit of Rule 1.1, is to establish a new, viable and effective political culture which places the citizen at the centre of governance and maximize on the Unity of Purpose without discriminating on grounds of creed, cultural and ethnic affiliation, gender or age, linguistic and religious diversity of the Kenyan People.

2.2 The nomination of candidates for (i) the election and appointment of Party Officials, and (ii) National and County General or By-elections, shall be guided by the following principles: -

- a) That the Constitution of Kenya 2010 is the supreme guide to all political and governance rules, processes and procedures and should be honoured by all Kenyans, the party members, the party candidates, the party officials, the party organs, the government institutions and the independent constitutional bodies, private organizations, non-governmental and foreigners;
- b) That the policy and direction of the Party shall be laid down from time to time in accordance with the party Constitution and any Rules made under it;
- c) That every member of the Party is entitled to belong to a branch and register as a voter within any of the Party branches in the country and take an active part in party discussions, policies formulation and implementation or any other activities of his/her Ward or Constituency or County and National levels;

- d) That every member of the Party is entitled to attend any County, Regional and National Delegate Conferences upon selection of delegates or alternate delegates to take all steps to vote and be voted for during party meetings, elected into parliamentary duties, in by-elections and the national elections;
- e) That the party meetings or conventions, as the case may be, shall, in a manner conforming with applicable laws and the party rules for calling such convention, select a candidate for nomination to each of the party or elective offices, as the case may be. Such meetings or convention is allowed to choose more than one candidate for nomination to any such office who shall be subjected to the vetting process. Candidates so chosen shall run in the primary as party-endorsed candidates;
- f) That the party must adhere to the policy of rotational nomination, selection and election of candidates for public elective and appointed positions, through transparent and accountable processes as provided for in these rules and the party constitution;
- g) That all political authority comes from the people by democratic means, including universal suffrage, regular free and fair elections and through a secret ballot or any other transparent means as may be determined from time to time by the party;
- h) The selection of candidates for any party or elective or any other appointed positions, shall be through the democratic processes instituted by the party and conducted through the Nominations and Candidates Selections Committee in strict conformity with all the relevant provisions of the Party Constitution;
- i) That the National Executive Council, shall determine the mode of election in any voting process, apply technology where appropriate, provided that Elections Board shall publish such resolutions and designate such number of polling stations, where applicable, as might be convenient to voters to access voting centres;
- j) That no other party authority except the Nominations and Elections Board shall have jurisdiction over the conduct of any primary and its method of selecting party candidates;
- k) That the Nomination and Election Rules and Procedures should allow for promotion of diversity within the elected officials in terms of geographical dispersion, gender, disability and age and that the party list shall reflect such regional and ethnic diversity of the people of Kenya. This criterion is not applicable in the case of Party Lists for County Assembly Seats;
- l) That the Nomination and Elections Board will take measures to ensure that not more than two thirds of the members in the published party list are of the same gender or ensure that not more than two thirds of persons of any one gender dominate positions in any single organ. The measures could be based on affirmative action including party tickets for elective seats for Parliament being reserved for women members in a manner that the Party NEC will determine;
- m) That the Nomination and Elections Board shall facilitate an effective participation of different groups of members in the society so that we can cultivate a political culture in the party where the representation of all interests in the society including those of workers, professionals and business community, marginalised communities and groups such as women and children, youth, older members of the society, persons with disabilities and minorities and marginalised and any other disadvantaged groups are accepted;
- n) That the party shall nominate and submit to the Commission, a list of all the appropriate number of qualified candidates who would stand elected if the party were to be entitled to all the seats on the Party Lists and alternates between male and female candidates in the priority they are listed in accordance to Articles. 97 (1)(c), 98 (1) (b), (c), (d), 177 (I)(b), (c) of the Constitution of Kenya and Section 34 of the Elections Act No. 24 of 2011 except that the gender criterion does not apply to the Senate (Women) Party List [Article 98(1) (b) of the Constitution], as all 16 nominees are women. In the case of

persons nominated pursuant Article 177(l) (c) of the Constitution, the party list shall include a certification in the manner prescribed by the Commission;

- o) That the Elections Board shall monitor the state of the Party List after a General Election or for a By-Election, until the next General Election when the Party List is re-established and place a condition that a person on the Party List, should complete a binding undertaking in writing to remain loyal to the Party, so long as that person remains on the List lodged with the IEBC, after the General Election;
- p) That all persons so remaining as provided in paragraph (p) above, shall also undertake in writing not to signify a willingness to be appointed to the government (if a different party) if approached by other parties or coalitions after a General Election without first consulting with the National Executive Council and receiving the approval of the National Governing Board;
- q) That the names in the Party List shall be in the order of priority and shall be a closed list, as it may not be amended after it has been submitted to the Commission. Each Party List nominee shall, after nomination, submit to the Commission a letter stating his or her intention to serve if nominated;
- r) That the party list shall not contain a name of a candidate nominated for an election;
- s) That the qualifications and disqualifications prescribed for Members of Parliament and County Assembly shall apply to the Nomination for special seats;
- t) That a person nominated under the foregoing provisions be a person who is a member of the Party on the date of submission of the party list to the Commission;
- u) That the party elected or appointed officials should maximize the value of servant leadership and promote responsible, democratic, selfless and visionary leadership, acceptable to the Party members and the people of Kenya;
- v) That all applicants for nomination as party candidates shall sign a code of conduct and pledge of loyalty and commitment which must be witnessed by a Commissioner of Oaths or Magistrate;
- w) That the candidate shall contribute monthly for purposes of financing party operations and the amounts to be pledged shall be set and reviewed from time to time by the National Executive Council. The amounts pledged shall be recoverable by the party as a civil debt;
- x) That a member holding either a public office courtesy of the party or holding a party position and is convicted of crimes under national or international laws will be subjected to fair disciplinary procedures;
- y) That any member may, attempt at the first instance, seek and settle any complaint or dispute through alternative justice processes including arbitration, mediation, conciliation, reconciliation, negotiation, and traditional dispute resolution mechanisms;
- z) That any member is accorded the chance to appeal to a party tribunal mandated to resolve cases and complaints or nominations and elections, and endorsement arising from Branch, Sub Branch, and Polling Station, in respect of Candidate Selection Process for the Presidential, Governors, Senators, Members of the National Assembly, and County Women Representatives.

2.3 Further to the requirements of Sub-rule 2.2, the following principles shall additionally be considered by the party before and after nomination of its members to the party list;

- a) That the party will ensure that the nomination process is inclusive, free, fair and peaceful;
- b) That merit in nomination can consider various variables not limited to education level, popularity among the people and relevant skills;
- c) That the wishes of the people with respect to the nominees are respected and prioritized;
- d) That party members are rewarded for their material, intellectual and moral contribution to the party;

RULE 3 – INTERPRETATION

3.1 In these rules, unless the context otherwise stated or amended, the following terms, as used in these Rules, shall have the following meanings:

"Agent" means a person duly accredited by a candidate as his agent or appointed by the political party or an independent candidate for the purposes of an election.

"Ballot box" means a closed and sealed transparent container into which voters deposit their ballot papers. Ballot boxes have small slots on top which are big enough to accept ballot papers from voters but which prevent vote tampering. These ballot boxes are set up at polling places during elections.

"Ballot paper" means a paper used to record the choice made by a voter and shall include an electronic version of a ballot paper or its equivalent for the purposes of electronic voting.

"Candidate" means a person duly cleared by the Party in accordance with these Rules to contest for an elective post.

"Commission" means the Independent Commission of Kenya (IEBC) established under Article 88 (1) of the Constitution of Kenya.

"Constituency" means one of the constituencies into which Kenya is divided under Article 89 of the Constitution.

"County" means the counties into which Kenya is divided under Article 6 (1) of the Constitution and specified in the First Schedule of the Constitution.

"Convention" means a meeting of delegates of the party held for the purpose of designating the candidate or candidates to be endorsed by such party in a primary for National or County or Branch offices or for the purpose of transacting other business of the party.

"Election(s)" means an election or elections referred to in these rules.

"Election material" means ballot boxes, ballot papers, counterfoils, envelopes, packets statements and other documents used in connection with voting in an election and includes information technology equipment for voting, the voting compartments, instruments, seals and other materials and thins required for the purpose of conducting an election.

"Election officer" means a SFUP election official on duty.

"Election offence" means an offence under this Elections Act 2011.

"Election results" means the declared outcome of the casting of votes by voters at an election.

"National Delegates Register" means a list of Party members eligible to attend the National Delegates Convention.

"Nomination" means the Nomination of candidates qualified under these Rules to contest for elections at a general or bye-election (whatever the case may be) on the Party ticket or the submission to the IEBC the name of a candidate in accordance with the party constitution and the constitution of Kenya 2010."

"Nomination Petition" means the form or forms used for obtaining the required number of signatures of qualified electors, which is circulated by or on behalf of the person wishing to become a candidate for a political office.

"Nomination official" means a person duly appointed in accordance with these rules or any other person officially engaged in the nomination process.

"Nominations and Elections Board or NEB" means the organ of the Party established under Article of 26 of the Party Constitution.

"NEB" shall herein refer to the party Nominations and Elections Board.

"Non-partisanship" means a lack of affiliation with, and a lack of bias towards, another political party.

"Party" means the Shikana Frontliners for Unity.

"Party delegates register" means the register of Party delegates for purposes of Presidential primaries at the National Delegates Convention as certified by Nominations and Elections Board;

"Party-endorsed candidate" means in the case of a candidate for state office, a person endorsed by the board, committee, caucus or convention, convention of the party as a candidate in the primaries to be held by the party;

"Party list" means the list of elected candidates to the Party List in accordance with Article 90 of the Constitution of Kenya, 2010 for purposes of filling the seats specified under Articles 97 (1)(c), 98 (1)(b), (c), (d), and 177 (1)(b) and (c) of the Constitution of Kenya, 2010;

"Party primary elections" means the procedures under these Rules through which the Party elects its candidates for a General Election or By-Election other than candidates for the Party Lists;

"Party Members' Register" means the register of SFUP members, certified by the Registrar of Political Parties in accordance with the provisions of the Political Parties Act;

"Person With Disability" means a person with any physical, sensory, mental, psychological or other impairment, condition or illness that has, or is perceived by significant sectors of the Community to have a substantial or long-term effect on an individual's ability to carry out ordinary day-to-day activities; and is registered with the National Council for Persons with Disabilities;

"Polling station" means the venue, any room, place, vehicle or vessel set apart and equipped for the casting of votes by voters at an election as gazetted by IEBC, or any other Polling Station designated for voting in accordance with these rules.

"Presiding officer" means a person appointed or designated under these rules to preside over elections at a polling station.

"Primary" means a meeting of the members of the party, held during days which the candidates for nomination are vote by way of a secret ballot.

"Recanvass" means essentially a review of the vote totals counted. The clerks will review the absentee votes and check the printouts to make sure the numbers were correct when they were transmitted to the Elections board. The party allows for recanvassing only if a clerk or elections board of notices a discrepancy or if a candidate makes a written request to the secretary of the board.

"Recount" means a repeat tally of individual votes cast. Any candidate for any party or elective office can request a recount. A candidate who requests a recount must pay for the associated costs.

"Register" means the register of Party members approved by the Registrar of Political Parties.

"Returning officer" means a person appointed by the Shikana Nominations and Elections Board to preside over Party elections and nominations. The Chair of the Nominations and Candidates Selection Committee shall take up this role within a given political area.

"Secret ballot" means the expression by ballot, voting machine, or otherwise, but in no event by proxy, of a choice with respect to any election or vote taken upon any matter, which is cast in such a manner that the person expressing such choice cannot be identified with the choice expressed.

"Selection Committee" is the committee appointed pursuant to Rule 6 of these Rules;

"Slate" means a group of candidates for nomination by the party.

"Special interest groups" include (a) Women; (b) Persons with Disabilities; (c) Youth; (d) Ethnic and other Minorities; and (e) Marginalised Communities.

"Universal suffrage" means the right to vote for political representatives conferred to almost all adult citizens or residents, regardless of their social status, property, knowledge, religion, race, gender, or other similar qualifications. The principle of universal suffrage, together with principles of equal, free, secret, and direct suffrage, present fundamental principles of elections common to all democracies around the world.

"Voters" means any person who is validly registered and by the Commission under the laws of Kenya to vote at a general or bye-election and whose names are included in the Party Register and are in possession of SFUP membership cards, identity cards and a registered voter card.

"Ward" means the voter al unit for which County Assembly members are elected within the meaning of Article 89 and Article 177 (1) of the Constitution of Kenya and as delimited under the National Assembly Constituencies and County Assembly Wards Order, 2012 or as amended or altered by Judgment of the High Court delivered in Nairobi Judicial Review Application Number 94 of 2012 or as may be reviewed by the Electoral Commission from time to time.

"Write-in candidate" means one whose name voters fill in despite not appearing on the ballot. While these rules require members to vote in official candidates, Shikana shall allow voters to write in the name of any candidate they please. It further provides the part to further consider interviewing such persons that have been written-in and register them as candidates if the meet the requirements.

"Youth" mean persons between the ages of 18 years to 35 years.

PART II –RULES GOVERNING THE PARTY ELECTIONS PROCESS

RULE 4 - NOMINATION AND ELECTION BOARD (NEB)

- 4.1 The Nomination and Election Structure *as illustrated in annexure XIII* and will consist of the following: -
- a) National Executive Council (NEC)
 - b) Nominations And Elections Board (NEB)
 - c) Nominations and Candidate Selection Committee (NCSC)
 - d) Returning Officers (RO)
 - e) Presiding Officers (PO)
 - f) Polling/Counting Clerks
 - g) Scrutineers
 - h) Security Officers Clerks
- 4.2 There is hereby established in accordance with Article 20 the Party Constitution, an autonomous **Nominations and Elections Board** (hereinafter “**the Elections Board or NEB**”).
- 4.3 The Elections Board will be appointed by NEC on the recommendations of the Supreme Advisory Committee and will comprise of not less than five (5) and not more than twelve (12) knowledgeable individuals of good standing and respectable with high integrity and do not hold any elective party position.
- 4.4 The Elections Board members shall include:
- a) a Chair, Deputy-Chair and Secretary,
 - b) a Election Administrator and Campaign Coordinator;
 - c) a person representing special interest groups;
 - d) at least one-third of either gender;
 - e) the Executive Director as an ex- officio member;
 - f) five other members appointed by NEC
- 4.5 During its first meeting, the Election Board shall elect one of their members who shall be of the opposite gender to the chairperson to be a deputy chairperson and another to be a Secretary to the board from among themselves. The Board Members must consist of individuals from different ethnic groups.
- 4.6 The Elections Board shall serve for a term of four (4) years and are eligible for re-appointment at the expiry of their term, subject to a maximum of two (2) consecutive terms.
- 4.7 The Elections Board shall receive secretarial and other support services by the National Secretariat in the discharge of its mandate.
- 4.8 In order to manage the complex requirements of any elections or campaigns, the election board shall constitute and appoint, as it deems fit, a number of Nominations and Candidate Selection or Party Listing Committees in the Counties with large degrees of responsibility to support its conduct of free and fair party elections.
- 4.9 The National Executive Committee shall appoint an Appeals Board comprising of Five (5) members to handle all disputes arising out of the Party’s Presidential, Gubernatorial, Parliamentary and County elections. Its decisions shall be final.
- 4.10 A person shall be qualified for appointment as a member of the Nominations and Elections Board if such person:
- a) is a Kenya Citizens that have attained a minimum age of eighteen (18) years;

- b) is a fully paid-up member of the Party;
- c) is experienced in election matters;
- d) is eligible to vote at an election;
- e) has not been convicted of an election offence;
- f) satisfies the requirements on leadership and integrity as specified in this constitution, the Constitution of Kenya and enabling legislations; and
- g) have a degree from a recognized university and have relevant experience in any or all of the following fields -
 - i. Leadership, Governance and Management;
 - ii. Public administration and Finance;
 - iii. Political Science, Social Sciences, or Humanities
 - iv. Law and Electoral matters; and
 - v. The chairperson of the NEB shall be a person qualified to hold the office of a Judge of the High Court of Kenya.

4.11 A NEB member may be removed from office on the following grounds;

- a) is declared bankrupt;
- b) death of the board member;
- c) becomes mentally incapacitated;
- d) declares an interest in a particular nomination;
- e) if the Board Member resigns or defects the Party;
- f) acts that may deemed as gross misconduct while performing his/her duties;
- g) seriously violates the Party Constitution, Nomination and Election Rules or the Code of Conduct;
- h) convicted of an election offence or criminal offence that carries a sentence of at least six months with no fine; or
- i) the court finds that the member has violated provisions of chapter six of the Constitution of Kenya, 2010

4.12 A person desiring the removal of a member of the Board or the Board itself must make an Application to the National Executive Council stating the reasons for such removal.

Functions of the Nominations and Elections Board

4.13 The Specific function and powers of the Nominations and Elections Board shall be to;

- a) formulate rules and procedures for the conduct of its affairs;
- b) once appointed and sworn in, shall according to Party Constitution put in place structures to ensure effective national, county/ branch and sub branch nominations and elections and consult with the Director of Elections, Party Leader and the Secretary General to ensure an efficient and effective service delivery;
- c) oversee the identification, acquisition, installation and utilization of such technology as may be appropriate for the conduct of elections and ensure procurement of all other electoral materials, goods and services is done in a timely manner;

- d) under the direction of the National Executive Council and approved by the National Governing Board prepare the ballots which is distributed electronically or printed, and ensure adequate equipment and nomination materials are distributed in a timely manner;
- e) ensure gender parity and conformity with the Constitution of Kenya, the electoral laws, Party Constitution and party nominations regulations and other relevant laws and where necessary review the Party elections and nominations rules for ratification by the National Executive Council;
- f) determine eligibility of candidates for elections as party officials and delegates at branch and sub-branch level and eligibility as candidates for County and Parliamentary seats and party candidates for presidential elections;
- g) participate in the nominations and selection of party candidates at all levels of the Party and supervise elections to fill any vacancies that may arise from time to time;
- h) design all relevant forms and other documents required for purposes of party elections and/or nominating Party candidates for elections and receive candidate selection forms and other required elections documents from the branches and the county;
- i) set the timeline for identifying aspiring party candidates and notify all members before the party primary, plan, organize, direct, coordinate and supervise all the Party Appointments, Nominations, Candidates Selection and Elections for Presidential, Gubernatorial, Parliamentary and Civic candidate's nominations throughout the Republic of Kenya, in readiness for the National and County Assembly General Elections;
- j) set the date and venue for the party primaries, announce the qualifications and requirements for eligibility as aspiring party candidate, select the party officials who shall be responsible for the undertaking or supervising of the Presidential, Parliamentary and County level primary nominations in respect of a general election or by-election and in accordance with these rules;
- k) present to the National Executive Council the names of the elected party officials and successful applicants for nomination as Presidential, Parliamentary, Gubernatorial and County Assembly candidates;
- l) issue a notice to the members regarding any exercise in the party nomination of Party Lists and supervise the conduct of Party Lists elections for compliance with Article 90 of the Constitution of Kenya, 2010;
- m) invite applications for nomination from aspiring party candidates for all elective seats, set timeline of return of the applications, determine eligibility of candidates for nomination as party candidates, verify the applications and other documentations and consult with NEC to issue notices to Members of the party of date, venue, and time within which nominations shall be conducted in accordance party requirements;
- n) appoint and supervise a Nominations & Candidates Selections Committee, the Returning Officers, Deputy Returning Officers, Presiding Officers, the Scrutineers, Polling and Tallying Clerks, Security Officers, Party agents and accreditation of independent election observers and all other election officers and if necessary to establish County/Branch Elections Panel, make rules to govern their operation, in consultation with the National Executive Council as shall be necessary for the better carrying out of its mandate;
- o) review and ensure updated party membership lists ahead of nominations, identify suitable venues for conducting the party nominations, provide logistics relating to the nominations exercise, ensure the secrecy of the vote by providing adequate security and be responsible for delivering the result of the selected candidates to the board, receive nominations results from Returning Officers and present the election results (including Presidential) to the National Executive Council;

- p) vet all candidates aspiring for Party election including presidential in accordance with provisions of the Constitution of the Republic of Kenya, Party Constitution, the Party Nomination and Election Rules and Procedures, the Party Code of Conduct and any other applicable voter laws and grant a candidate an automatic nomination with the written approval of the National Executive Council;
- q) design Nomination Certificates in respect of any election and in consultation with the National Executive Council, issue certificates that bear the seal of the Party and signed by the Party Leader and the Chairperson of the NEB to a candidate duly nominated upon being announced the winner, and file the necessary statutory declarations signed by the chairperson of NEB to certify that the Party has complied with these Rules in the conduct of the Party primaries and nominations to Party Lists;
- r) through the office of the Director, Nominations and Candidate Elections, present to the National Executive Council a list of all candidates seeking election to or contesting the party positions or nominations for National and County level elective positions; PROVIDED that the National Executive Council may raise objections on reasonable grounds regarding the suitability of any candidate or grounds that a candidate presented and that such a candidate shall be heard on the objection before any determination on their fate is made; the objections by the NEC will be reviewed by the NEB and a decision made by consensus in the first instance failure to which it will be determined by the Appeals Board;
- s) take all the necessary measures to ensure that the party elections and nominations are transparent, peaceful, free and fair and that the choice of candidates truly reflects the will of members and the people. In extreme situations, stop an election, in whole or in part, and direct that a new election be held or that an election resume;
- t) in discharging its functions, independently and impartially exercise its functions on behalf National Executive Council and not be under the direction of any person;
- u) act in accordance with the national constitution, election act, the party constitution, these Nominations Rules and any rules of procedure that may be promulgated in accordance with the party constitution and deal with any challenges that arise during the election process, including judicial reviews and police investigations of alleged election offences;
- v) where any aggrieved may file any grievances regarding the nomination exercise, the party organs that will hear and determine any appeal and the fee, if any, that should be paid;
- w) devise or formulate rules of procedure for the election disputes appeals tribunal which shall be independent. The appeals tribunal shall hear and determine disputes where an appellant is dissatisfied with the decision related to nominations, selection, elections and party listings and communicate its resolutions to The Nominations and Elections Board;
- x) conduct a recall of elected members if warranted;
- y) respond to community inquiries and the procedural conduct of the election;
- z) outsource such assistance as may be necessary for the fulfilment of its mandate.

RULE 5 - NOMINATIONS AND ELECTIONS OFFICIALS

5.1 Unless otherwise determined by the National Governing Board and/or the Supreme Advisory Committee, the NEB shall recruit and train electoral officers to support its conduct of Party elections on such terms and conditions as it deems fit.

5.2 The recruitment of election officials may take place any time prior to the commencement of the Party primaries. The recruitment will take into account the skills needed relating to the selected method of voting.

Qualification of Election Officials

5.3 No person shall be appointed as an Election Official unless he/she is:

- a) a current member of the party.
- b) of good standing and integrity
- c) ordinarily resident in the constituency.
- d) not an elected official of the Branch Executive Committee
- e) undertakes to abide by the rules and regulations set by the Nominations Elections Board.

Returning Officers and Deputy Returning Officers

5.4 In exercising its mandate, the NEB shall appoint and delegate its powers and duties to the Returning Officer who shall be in charge of party nominations and elections at the Ward, Constituency, County and Region as the case may apply from time to time and as stipulated in these rules and procedures.

5.5 The NEB shall, in consultation with the Branch Executive Committee, appoint a Constituency and County Returning Officer and such number of deputy officers as it may consider necessary to oversee the nomination and election of party officials and delegates and the nomination of party candidates for national elections at sub branch and branch levels.

5.6 The Board shall appoint and accredit as it may consider necessary, 13 Returning officers, who shall represent each region of Kenya as illustrated in schedule XII of the Party Constitution, Presiding Officers per number of counties in that region and polling/counting clerks as may be deemed fit per region.

5.7 In addition to the above each Presidential Candidate shall be entitled to designate an agent per region.

5.8 There will be a widely publicized notice inviting members of the party and public to apply for the position of a Returning Officers and his/her deputy within a reasonable period of time and the number, qualification and vetting shall be determined by the Nominations and Elections Board.

5.9 A deputy constituency returning officer shall, subject to the general direction and control of his or her returning officer, have all the power, and may perform all the duties, of the returning officer under these rules.

5.10 All election officials serving at any primary shall be sworn to the faithful performance of their duties.

5.11 For the performance of the duties, each election official actually engaged therein shall receive such reasonable compensation from the party as is approved by the Election Board, as the case may be; and all necessary expenses incurred by Committee under the provisions of said sections shall be paid by the party;

RULE 6 – NOMINATIONS AND CANDIDATES SELECTIONS COMMITTEE

6.1 Pursuant to sub-rule 4.8, the National Executive Council and the Elections Board, shall constitute a Nominations and Candidates Selections Committee (hereinafter referred to as **“the Selection Committee” or “the NCSC”**) in each Branch, County, or Region with their primary purposes being to identify and nominate members to be potential candidates who are able to contest in the Presidential, Parliamentary, Gubernatorial or County Assembly elections in the Country, or to be nominated to Parliament and County Assemblies.

6.2 The NEB may, as it deems fit, constitute a Nominations and Candidates Selection Committee at National level to support the conduct of Party primaries for the Party’s Presidential and Deputy President Candidate at the National Delegates Convention.

6.3 In exercising its mandate, the Selection Committees shall perform all such tasks and duties as assigned and delegated to them and work under the supervision and the general direction of the NEB.

- 6.4 Members of the Selection Committee shall be independent, neutral and distinguished persons of good moral standing in society and of high integrity and who shall not be seeking any elective post or nomination.
- 6.5 The following shall constitute the rules that guide the functions of the committee in relation to nominations and party listing;
- a) Ensure the candidates nominated by the committee shall be members of the Party who subscribe to the Party Constitution, ideology, principles and policies;
 - b) Any individual desiring to be nominated as a candidate for Presidential, Parliamentary, Gubernatorial or County Assembly elections shall adhere to both the Party's and National Electoral laws and these rules;
 - c) Ensure each candidate shall pay nomination fee as determined by the NEC and such other fees as may be required under written law to be payable for the purpose of the nominations and elections exercise;
 - d) Determine eligibility of candidates to be elected as a party officials or delegates at sub branch, branch and county level and eligibility as candidates for civic and parliamentary seats as provided for in these Rules;
 - e) Determine the number of and appoint Returning Officers, Deputy Returning officers, Presiding Officer, Deputy Presiding Officers, Polling and Counting Clerks, Scrutineers and Security Officers;
 - f) Sponsor only one candidate who exhibit the skills, experience and commitment to the Party values and policies, for every elective position in a given elective area;
 - g) Keep a register of the members of the branch who shall be eligible to vote during the elections and nominations;
 - h) Conduct in depth vetting, interviews and reference checks of the potential candidates and make a suitable candidate selection;
 - i) Specify any other processes for ensuring a balanced list of candidates in any given elective areas;
 - j) Prepare the Party Candidates list to be nominated for both County and National Assemblies;
 - k) Supervise the nomination and election process at Sub-Branch, Branch and County levels;
 - l) Safely keep ballot boxes and other nomination materials in each constituency;
 - m) Submit the election and nomination results directly to the Elections Board;
 - n) Organize training, advice, support and facilities for approved candidates;
 - o) Receive the names of agents from the candidates;
 - p) Accredited independent observers and party agents;
 - q) Undertake any other responsibilities assigned by the Elections Board related to election and Nomination Process.

RULE 7 – ELIGIBILITY FOR PARTY OFFICIALS POSITIONS

Eligibility Criteria for Party Official or Elective Position

- 7.1 An aspiring candidate or nominee seeking nomination and elections to fill in any positions in the Party Organs or in respect of the National Officials, Presidential, Gubernatorial and his/her Deputy, Civic/ County Assembly and Parliamentary/National Assembly, Senator, Women Representative Elections, shall fulfill the following **general provisions** in alignment with accountability, leadership and integrity for the respective elective positions:
- a) Fear God Almighty;

- b) Be a registered voter in that electoral area;
- c) Must have been a resident in Kenya for not less than the past 15 years;
- d) Be able to read and write and is proficient in both English and Kiswahili languages;
- e) Has evidence of registration as a member of the party (Membership Card and Certificate);
- f) If a youth, must have attained the age of eighteen years but not attained the age of thirty-five years;
- g) Up-to-date with Payment of the required annual subscription fees and the payment of nomination fees;
- h) Loyal to the Constitution of the Republic of Kenya and Committed to the ideals and core values of the party;
- i) Be registered as a voter or a member in the Ward/Constituency and County for which he/she seeks election;
- j) Has a Copy of Voter 's card, National Identity Card or Valid Passport (the document used by the nominee to register as a voter) or affidavit;
- k) Pursuant to Article 78. (1) of the Constitution of Kenya, be a Kenyan citizen by natural birth in order to be eligible to stand for election or appointment to any State office;
- l) Must not hold dual citizenship unless citizenship of the other country has been obtained by operation of law without capacity to opt out;
- m) Not have been convicted of crimes against humanity or a criminal offence involving moral turpitude or deprived of civil rights by court or sentenced to imprisonment based on a court decision;
- n) Has never betrayed the people or the state, or committed a disgraceful act or a crime of corruption or declared bankrupt and other serious crimes and can report his wealth and obtained clearance from EACC (the statutory declaration under the leadership and integrity Act);
- o) Has a taxpayer identification number and has carried out the obligation to pay taxes for the last 5 (five) years as evidenced by an annual income tax return for individual taxpayers;
- p) If a party list PWD, a certificate and form signed by a medical doctor or certification from the National Council for Persons with Disabilities;
- q) Has a vision and mission for implementing socio-economic programs for the people and the government of the Republic of Kenya;
- r) A signed declaration that the nominee has adhered to leadership and integrity requirements in chapter six of the Kenyan Constitution; must be members of the Party in good standing, has integrity, demonstrable competence and proven leadership abilities, experience in management of public affairs among others;
- s) Must have been a financial member of the Party for 12 months immediately prior to the date of nomination and be eligible to stand for election into any party or public office or considered for political appointment unless the National Executive Council rules to the contrary;
- t) Must have a Duly Filled Application Form and Nomination Form Duly completed in duplicate and signed by a Proposer and Secunder both of whom must be members of the party and registered voters in the electoral area to presented to the Nominations and Elections Board;
- u) Duly execute Declaration of Candidacy Form, Pledge of Commitment to the party's constitution, policies and principles, Code of Conduct Form, Party Right Agreement, and Subscribe to the requirements as determined by Nominations and Election Board;
- v) Evidence of registration as a candidate of the party or receipt of payment of nomination fee (when applicable). The fees to be levied by the party on every aspiring candidate, shall be made known to

the party members and may be graduated, waived or different to take into account special interest groups who are aspiring candidates in the party primaries;

- w) Possess a detailed Curriculum Vitae illustrating amongst other qualifications, copies of the candidate's academic qualifications (when applicable) from the relevant institutions or the minimum educational qualifications as provided for under the Election Act 2012, the party constitution, these rules or any other equivalent rule stating the requisite qualification to be eligible to contest;
- x) Demonstrate active participation in Party programs and activities twelve months prior to seeking nomination, PROVIDED that any person unable to meet this requirement may apply in writing to the National Executive Council for exemption from the operation of this requirement and if the National Executive Council deems it in the interest of the party, it may exempt such member.
- y) Meet all minimum requirements under the Section 22 and 23 of the Elections Act, 2011, provisions of Chapter 6,7 and 8 and Regulations set out by the Constitution of Kenya, the Independent Electoral and Boundaries Commission (IEBC) requirements for elective positions, and the Political Parties Act and any other related Regulations from time to time;
- z) Be present during the meeting at which the election is carried out; PROVIDED that the National Executive Committee shall at its discretion waive this requirement where a person seeking election has indicated in writing under his or her hand that he or she is willing to serve in such office if elected.

Disqualification From Participating in Election of National Party Offices

7.2 A person is disqualified from being nominated and elected into any position in Party organs or committees or delegate or from seeking nomination for civic, parliamentary and presidential elections or to a Party List or any other elective position or any delegate may be disqualified by the NEB from taking part in party election on ground of proven misconduct with regard to elections **if the person:**

- a) Is not a citizen of Kenya;
- b) Death or medical reasons;
- c) Is an undischarged bankrupt;
- d) Is incapacitated and of unsound mind;
- e) Has any outstanding dues and penalties owed to the Party;
- f) Failing to accept or abide by this Constitution and any other rules of the Party;
- g) Has intimated his or her resignation either to his or her Branch or to the NEC, or publicly;
- h) A resolution is passed by the National Executive Council to expel or suspend such positions;
- i) Suffers physical impairment, which adversely affects the ability to carry out the duties of the office;
- j) Has not been a citizen of Kenya for at least the 15 years immediately preceding the date of the election;
- k) Is found to have planned, sponsored or participated in any violent activity or promoting political violence and intimidation;
- l) Is found to have provided false statement during nomination and voting or disregarding party policy decisions including the election and nomination rules;
- m) Failing to renew their annual membership by payment of the subscription fees as provided herein or has uncleared arrears with the party in terms of contribution;
- n) Making public utterances and machinations that may arouse racial, ethnic, religious or gender animosities amongst the party members or has been found guilty of misconduct or dishonesty or bribery in the conduct of party affairs;

- o) Pledging or showing allegiance to another political party or declares to have transferred their membership to another political party, or openly supporting other parties competing with SFUP or accept an office or subscribe to or promote activities of another Political Party or Organization whose aims and objectives are in competition with or in conflict with those of SFUP;
- p) A verbal or written resignation to the Secretary of the relevant Branch or National Executive Council, the Secretary General of the Party or Party Leader and as such shall be effective the date of the receipt thereof;
- q) The Branch Executive Committee canceling or suspending the membership of any person whose actions, as a result of investigation and evidence, prejudice the interests of the Party and such cancellation or suspension under sub-clause, is approved by the National Executive Council before it is enforced;
- r) Absenteeism without reasonable cause from at least three (3) consecutive meetings or for such period as shall be prescribed by National Executive Council;
- s) Has at any time within the five years immediately before the date of election held office as a member of the Independent Electoral Boundaries Commission or any Election Commission;
- t) Is engaged in any conduct with respect to elections, which would invite disciplinary proceedings under the Constitution of the Party or has employed violence, threats to violence, or intimidation, including violence against persons with disabilities or sexual and gender-based violence, as a means for political mobilisation against opponents.
- u) Has been found by a court of competent jurisdiction, in accordance with any law, to have misused or abused a State or Public Office or to have contravened any provision of Chapter Six of the Constitution of Kenya;
- v) Has been convicted of any corrupt practices or criminal offence amounting to a felony other than a political offence or is serving a sentence of imprisonment, or is subject to a sentence of imprisonment of at least six months as at the date of nomination as a candidate; PROVIDED that the National Executive Council may for good cause, which shall be specifically documented, exempt any applicant from this requirement;
- w) Fails to meet any qualification criteria specified for an elective position or qualify to hold office pursuant to the provisions of the Constitution of Kenya, 2010, the Elections Act No. 24 of 2011, the Constitution of the party and such other relevant laws and regulation that may be in force;
- x) Holds a State or Public Office pursuant to the Political Parties Act except for the Sitting President, Member of County Assembly, Member of National Assembly, Senator, County Governor or County Woman Representative to the National Assembly;
- y) Must not have been dismissed or removed from public office (including by impeachment) for contravening the provisions of Articles 75, 76, 77 and 78 of the Constitution;
- z) in other cases, as may be set out from time to time by an operation of any prescribed law.

7.3 A person is not disqualified under sub-rule 7.2, unless all possibility of appeal or review of a relevant sentence or decision has been exhausted.

RULE 8 - NOMINATION FEES FOR CANDIDATES FOR ELECTIVE POSITIONS

8.1 The National Executive Committee (NEC) reserves the right to set or waive or vary the nomination fees payable for any of the categories.

Nominations of Candidates for Member of the County Assembly.

8.2 A person nomination for Member of the County Assembly Elections shall fulfill the following requirements:

- a) Be 18 years of age and above;
- b) Be a life member of the party;
- c) Proficient in Kiswahili and English;
- d) Subscribe to the requirements as determined by NEB;
- e) Be a Kenyan citizen with a National Identity Card holder of a valid Kenyan Passport as may be prescribed by law;
- f) Be a registered voter and fully paid-up member of the sub-branch in the area in which she or he is seeking nomination and election;
- g) Have an active member of the party for at least three (3) months before the time of nomination, provided that the National Executive Council may for good cause which shall specifically documented, exempt an applicant from this requirement, subject to any conditions they may deem fit;
- h) Meet the minimum requirements county assembly candidates as set out by the Independent Electoral Boundaries Commission and such Other relevant regulation that may be in force;
- i) A nomination Form in the prescribed form to be presented to the Nominations and Elections Board duly completed in triplicate and signed by a proposer and seconder both of whom must be members of the party and registered voters in the electoral area;
- j) A copy of Post-Secondary School Qualification recognized in Kenya or be in possession of a Degree Certificate or Higher obtained from a university recognized in Kenya;
- k) Fifty - (50) signatures of the party members who are registered voters from the ward;
- l) Non-Refundable fee of Kshs 25,000/= paid to Shikana Frontliners for Unity Party (SFUP) by a Bankers Cheque or deposited in the Party account and Kshs 20,000/- for Special Interest groups.

Nominations of Candidates for Member of Parliament/National Assembly:

8.3 A person nomination for Parliamentary Elections shall fulfill the following requirements:

- a) Be 18 years of age and above;
- b) Be a life member of the party;
- c) Be proficient in English and Kiswahili;
- d) Subscribe to the requirements as determined by NEB;
- e) Be a Kenyan citizen with a National Identity Card holder of a valid Kenyan Passport as may be prescribed by law;
- f) Be a registered voter electoral area; and fully paid-up member of the Constituency in which she or he is seeking nomination and election;
- g) Meet the minimum requirements parliamentary candidates as set out by the Independent Electoral Boundaries Commission and such Other relevant regulation that may be in force;
- h) Demonstrate active participation in Party programs three (3) months prior to seeking nomination, provided that the National Executive Council may for good cause which shall be specifically documented, exempt an applicant from this requirement, subject to any conditions it may deem fit, meet the minimum requirements for Parliamentary Candidates as set out by the Independent Electoral and Boundaries Commission;
- i) A nomination Form in the prescribed form to be presented to the Nominations and Elections Board duly completed in triplicate and signed by a proposer and seconder both of whom must be members of the party and registered voters in the electoral area;

- j) A copy of Post-Secondary School Qualification recognized in Kenya or be in possession of a Degree Certificate or higher obtained from a university recognized in Kenya;
- k) One hundred - (100) signatures of the party members who are registered voters from the Constituency;
- l) Non-Refundable fee of 75,000/= paid to Shikana Frontliners for Unity Party (SFUP) by a Bankers Cheque or deposited in the Party account, and Kshs 40,000/- for Special Interest groups.

Nominations of Candidates for Senator or Women Representative

8.4 A person nomination for Senate and Women Representative Elections shall fulfill the following requirements:

- a) Be 18 years of age and above;
- b) Be a life member of the party;
- c) Be proficient in English and Kiswahili;
- d) Subscribe to the requirements as determined by NEB;
- e) Be a Kenyan citizen with a National Identity Card holder of a valid Kenyan Passport as may be prescribed by law;
- f) Be a registered voter electoral area; and fully paid-up member of the County in which she or he is seeking nomination and election;
- g) Meet the minimum requirements parliamentary and county candidates as set out by the Independent Electoral Boundaries Commission and such Other relevant regulation that may be in force;
- h) Demonstrate active participation in Party programs three (3) months prior to seeking nomination, provided that the National Executive Council may for good cause which shall be specifically documented, exempt an applicant from this requirement, subject to any conditions it may deem fit, meet the minimum requirements for Parliamentary Candidates as set out by the Independent Electoral and Boundaries Commission;
- i) A nomination Form in the prescribed form to be presented to the Nominations and Elections Board duly completed in triplicate and signed by a proposer and seconder both of whom must be members of the party and registered voters in the electoral area;
- j) A copy a Degree Certificate or Higher obtained from a university recognized in Kenya;
- k) Two hundred - (200) signatures of the party members who are registered voters from the County;
- l) Non-Refundable fee of Kshs 100,000/= paid to Shikana Frontliners for Unity Party (SFUP) by a Bankers Cheque or deposited in the Party account and Kshs 50,000/- for Special Interest groups.

Nominations of Candidates for Governor or Deputy Governor

8.5 A member seeking nomination for elections as Governor or Deputy Governor shall fulfil the following requirements:

- a) Be 18 years of age and above;
- b) Be a life member of the party;
- c) Be proficient in English and Kiswahili;
- d) Subscribe to the requirements as determined by NEB;
- e) Be in possession of a degree certificate obtained from a university recognized in Kenya;
- f) Be a Kenyan citizen with a National Identity Card holder of a valid Kenyan Passport as may be prescribed by law;

- g) Be a registered voter electoral area; and fully paid-up member of the County in which she or he is seeking nomination and election;
- h) Demonstrate active participation in party programs (3) months prior to seeking nomination, provided that the National Executive Council may for good cause which shall be specifically documented, exempt an applicant from this requirement, subject to any conditions it may deem fit;
- i) Meet the minimum requirements parliamentary and county candidates as set out by the Independent Electoral Boundaries Commission and such Other relevant regulation that may be in force;
- j) A nomination Form in the prescribed form to be presented to the Nominations and Elections Board duly completed in triplicate and signed by a proposer and seconder both of whom must be members of the party and registered voters in the electoral area;
- k) Two hundred - (200) signatures of the party members who are registered voters from the County, separately for both Governor and his/her deputy;
- l) Non-Refundable fee of Kshs 200,000/= paid to Shikana Frontliners for Unity Party (SFUP) by a Bankers Cheque or deposited in the Party account and Kshs 100,000/- for Special Interest groups;
- m) The running mate for a Governor shall pay equal amount as of the fees prescribed for a Governor.
- n) Where a gubernatorial candidate emerges as the winner for the party ticket, the second runners up of the primaries shall the running mate and may be of either gender. If the running mate is of the opposite gender, or a person with disabilities, the candidate shall be refunded one quarter (1/4) of the fees prescribed.

Nominations of Presidential or Deputy President Candidate

8.6 A member seeking nomination for elections as Presidential or Deputy President shall fulfil the following requirements:

- a) Be thirty-five (35) years of age and above.
- b) Be a life member of the party;
- c) Be proficient in English and Kiswahili;
- d) Be of high moral standing and integrity;
- e) Subscribe to the requirements as determined by NEB;
- f) Be in possession of a degree certificate obtained from a university recognized in Kenya;
- g) Be conversant with, support and subscribe to the Party ideology, Philosophy, Mission and Values.
- h) Be a Kenyan citizen with a National Identity Card holder of a valid Kenyan Passport as may be prescribed by law;
- i) Be a registered voter electoral area; and fully paid-up member who is qualified to stand for election as a member of Parliamentary or county in which she or he is seeking nomination and election;
- j) Has been an active member of the party for a period not less than two (2) years prior to the time of seeking nomination, provided that the National Executive Council may for good cause, which shall be specifically documented, exempt any applicant from this requirement.
- k) Meet the minimum requirements for Presidential Candidates as set out by the Independent Electoral Boundaries Commission and such other relevant regulation that may be in force.
- l) A nomination Form in the prescribed form to be presented to the Nominations and Elections Board duly completed in triplicate and signed by a proposer and seconder both of whom must be members of the party, registered as a voter and is qualified to stand for election as a member of Parliament;

- m) Two hundred - (500) signatures of the party members who are registered voters from each of the majority Counties, separately for both Presidential and his/her deputy;
- n) Non-Refundable fee of Kshs 500,000/= paid to Shikana Frontliners for Unity Party (SFUP) by a Bankers Cheque or deposited in the Party account, and Kshs 250,000/- for Special Interest groups.
- o) The running mate for a presidential candidate shall pay equal amount as of the fees prescribed for a presidential candidate;
- p) Where a male presidential candidate emerges as the winner for the party ticket, the second runners up of the primaries shall the running mate and may be of either gender. If the running mate is of the opposite gender, or a person with disabilities, the candidate shall be refunded one quarter (1/4) of the fees prescribed.
- q) There shall be a Special National Delegates Convention convened to nominate the Presidential and Deputy President, and whose membership shall be as follows; -
 - i. The National Office bearers of the Party.
 - ii. Ten Delegates from each of the Constituencies. For the avoidance of doubt, all Party Members in the National Assembly, all members of the National Governing Council and all Members of the Branch Executive Committee shall be accommodated within the twenty delegates from their respective Constituencies.
- r) The date of the Special National Delegates Convention shall be announced by the NEC.
- s) In Constitution of the twenty delegates from each Constituency, care shall be taken to ensure, to the greatest extent possible, gender equity.
- t) On the date designated for the Special Delegate Convention, the Delegates: -
 - i. Shall arrive at the venue as early as 5 am and register at the entrance to the Convention.
 - ii. Shall receive identification tags numbered according to their respective Constituencies and Regions and shall be seated accordingly in the areas earmarked for their Regions.
 - iii. Each delegate shall produce an acceptable form of identification identifying the persons as the one whose name appears on the Register of Delegates.
- u) Voting shall be conducted in accordance to voting procedure prescribed in these rules.
- v) Before Commencement of the voting process, the Chairperson of NEB shall declare the names of duly nominated Candidates for nomination as the Party's Presidential and Deputy President Candidates.
- w) In the event that there is only one Candidate duly nominated, or other Candidates elect not to contest, the person so nominated shall be declared unopposed without need, to undertake the voting processes.

RULE 9 - CONDUCT OF ELECTIONS FOR PARTY OFFICIALS

9.1 The Party elections shall be conducted for the following organs of the party:

- a) National Office Bearers;
- a) Regional Representative Committee;
- b) County Working Committee;
- c) Branch Executive Committee;
- d) Sub-Branch Executive Committee;
- e) SFUP Women National Chapter;
- f) SFUP Youth National Chapter;
- g) SFUP Persons with Disabilities Chapter;

- h) SFUP Minority and Marginalized Chapter;
- i) SFUP Diaspora Chapter;

Elections of National Officials, Party Committees and Elective Positions

- 9.2 Without prejudice to the provisions of this Constitution, the principle of the Constitution of Kenya shall be observed in the appointment or election of members of the Party for any party office, party committees and any elective positions.
- 9.3 All Office bearers other than the Secretary for Parliamentary Affairs and the Executive Director shall be elected by the National Delegates Convention.
- 9.4 The Secretary for Parliamentary affairs shall be the Party Parliamentary Whip elected by the Party's Parliamentary Group immediately after a General Election. He or she shall hold office for a term of four years or for the residue of his/her Parliamentary term as may be current on his/her election, whichever is shorter.
- 9.5 All Party Officials shall not hold more than one office in the Party unless otherwise given pre-existing exceptional circumstances, and ratified by the National Executive Council.
- 9.6 The persons occupying positions at all levels of the party immediately before the effective date shall continue to serve in those positions until the first Party elections held under this Constitution, unless they vacate office.
- 9.7 Except for the Party Leader, the Deputy Leader, the Secretary General, and the Treasurer, any other member holding any office in the party at any level shall be deemed to have resigned that office, if he or she assumes any of the following offices:
- a) President of Kenya;
 - b) Deputy President of Kenya;
 - c) Special Adviser or Special Assistant to the President or Deputy President of Kenya;
 - d) Governor and Deputy Governor of a County;
 - e) Special Adviser or Special Assistant to the Governor or Deputy Governor of a County; or
 - f) Chairman, Deputy Chairman or Administrator of a Constituency;
 - g) Membership of the National and County Assemblies;
 - h) Cabinet Minister;
 - i) Ambassador; or
 - j) Any full-time employment or appointment in the public service to the National, or County government.
- 9.8 Any Party Member holding a County or Branch or Sub-Branch office and elects to seek election at Parliamentary or County Assembly during the next General Elections shall be required to resign from office by a written notification to the National Executive Council at least 180 days before the scheduled date of party nominations provided that this provision shall not apply in the event of an abrupt dissolution of Parliament or the County Assembly or by- elections. This provision shall not apply to persons holding national offices.
- 9.9 The Election of National Office bearers shall be conducted on the guiding principle that at least one third shall be of either gender.
- 9.10 In an endeavour to reach the party's objective of full representation of women, youth, minority and marginalised groups, elderly, persons with disabilities, and other vulnerable persons in all decision-making structures, the Party shall implement programmes of affirmative action that will ensure not less than one-

third (1/3) of women or either gender or proven marginalised groups or other special interest groups is represented in all organs, appointments, committees, nominations to enable such effective participation.

9.11 At a National Delegates Convention convened for the purposes of holding elections for National office bearers, the Returning Officer appointed by the Nominations and Elections Board shall:

- a) Ensure that all delegates present to take part in the election are eligible as per the national register of membership and have valid membership cards;
- b) Ensure that there is a quorum as provided for in this Constitution;
- c) Accredite media representatives wishing to cover the elections;
- d) Ensure that the venue for the elections is laid out in accordance with the method of elections to be used and that all materials required for elections are available;
- e) Confirm that all the candidates presenting themselves for elections have been duly nominated by the Nominations and Elections Board and afford each candidate an opportunity to introduce him or herself to the delegates;
- f) Post the list of candidates vis-à-vis the positions they are vying for at the election venue and bring the same to the attention of the delegates;
- g) Ensure that there is law and order at the venue to ensure atmosphere conducive for the holding of free and fair elections devoid of violence, bribery or other forms of inducements, undue influence or pressure.

PART III - RULES ON THE NOMINATION PROCEDURES AND PARTY PRIMARIES

RULE 10 – NOMINATIONS PETITION FORMS

10.1 These rules and procedures together with other written laws shall apply in respect to the nomination and election of Party candidates for the County Assembly, the Parliament, Presidential and other organizations to which the Party relates and ensuring the party has its candidate in readiness for an election.

Issuance of the Nominations Petitions Forms

10.2 The following are guidelines for issuing the nominations petitions forms;

- a) The Nomination Petition Forms for candidacies, shall be available from the Secretary of the Branch at the beginning of the one-hundred-twenty (120) days preceding the day of the party primaries;
- b) The written notice shall be published in the Party Spectrum, newspaper advertisements, the E-newsletter, on the Party's website and in at least two daily newspapers with national circulation and one announcement vide the electronic media throughout Kenya, or any other publications approved by the party for general circulation, to inform the members regarding the forthcoming candidate identification and nomination process;
- c) The Nominations Petitions Form shall be captioned as "*Nonpartisan Nomination Petition*", as illustrated in Annexure IV;
- d) Any person who requests for a Nomination Petition Form, otherwise called the Circulator, and is not a potential candidate shall give the person's name and address and office he seeks to nominate;
- e) Any individual proposed as a candidate in a petition may also serve as a Circulator of the Nominations Petition Form;
- f) Each circulator of a Nomination Petition Form shall be an enrolled party member of a Branch and authenticated by the Secretary of the Branch and shall be signed under the penalties of false statement;
- g) The Nomination Petition Form shall include a statement of instructions to the circulator and shall indicate the date and time by which it shall be filed;
- h) The petition form shall provide spaces for the Circulator to collect names and addresses of the candidates, and the offices to which nomination is sought, space for entering the names, signatures, physical addresses of the Circulator and space entering the names, signatures, physical addresses of at least 50 electorates who are supporting the person whose candidacy the petition is used;
- i) The petition forms shall be filled and signed by the candidate with a statement that such candidate consents to be a candidate for such office. The statement of consent shall include the candidate's name as he/she authorizes it to appear on the ballot and the form returned to the Branch Secretary;
- j) No such petition shall contain the names of circulator residing in different branches and any nomination petition form that has been certified by the Chair of a different branch shall be rejected by the Elections Board;
- k) The Nominations Petition Form for candidacies for party and elective office shall include, at the top of the form and in bold print, the following:

WARNING

It is a crime to sign this nomination petition in the name of another person without legal authority to do so and you may not sign this nomination petition if you are not a voter and member of the party.

- l) Any circulator who obtains the Nominations Petition Form and fraudulently signs, attests or files a false certificate or signs a name other than the person's own, under the provisions of this section shall be guilty of misdemeanour and shall be fined not more than one Kshs 1,000;
- m) Withdrawal of wholly signed and returned nomination petition forms shall not be permitted;
- n) Upon the receipt of any Nominations Petition Form proposing a candidacy for any elective office, the Secretary of the Branch shall forthwith sign and give to the person submitting the petition a receipt, in duplicate, and a copy of the filed form and the date and time of filing;
- o) The Secretary shall seek further guidance from Nominations and Elections Board, concerning any name or names of the candidates or electorates who have signed the petition and who does not appear on the member enrollment list of the Branch;
- p) The Chair of the branch shall reject or direct for further consultation with the Branch Executive, any Nominations Petition Form filed with the Secretary which does not contain such a statement by the Secretary and a statement by the circulator and a statement by the candidate as the case may apply, or upon which the statements are incomplete in any respect, or which does not contain the certification required under this section by the Secretary of the Branch;
- q) On the last day for filing nominations petition, in accordance with the provisions of this section, the Branch office shall open not later than one o'clock p.m., and remain open until at least four o'clock p.m., and such Secretary or their deputy or assistants shall be present to receive the nominations.

RULE 11 - DECLARATION OF CANDIDACY

- 11.1 Upon the receipt of all the Nominations Petitions Forms proposing a candidacy for any elective office, the Secretary of the Branch shall type or print the Declaration of Candidacy Form (hereinafter called the **"Nominations Form"**) *as Illustrated in Annexure V.*
- 11.2 The nominations Form shall be issued to the candidate upon closure of the petition period and shall contain the name and address of each such candidate, the number of persons who have nominated them and the office sought.
- 11.3 The qualifying candidates shortlisted by the party shall be contacted by the Secretary of the Branch to be handed their Nominations Forms or the member who seeks or is nominated by the electorate for any of the party or elective posts within the party can collect from the Nominations Forms from the Branch.
- 11.4 A potential candidate can present themselves to the branch and be issued with Nomination Forms.
- 11.5 The duly filled Nomination Form shall be accompanied with details of the candidate, and the office to which nomination is sought, space for entering the names, signatures, physical addresses of the Proposer and Seconder.
- 11.6 A separate sheet containing space for entering the names, signatures, physical addresses of at least 50 electorates from each polling station (who upon signing shall also be required to collect similar forms to continue with the exercise), or at least 200 in ward for members of county Assembly, at least 400 for Member of the National Assembly and at least 400 for the County governor, Senate and Women Representative who are supporting the person whose candidacy the petition is used.
- 11.7 The Nomination Form handed to the potential candidate shall include:
 - a) Name;
 - b) Age;
 - c) Gender;
 - d) Sub-Branch;

- e) Occupation;
- f) Physical Address;
- g) Year of Registration;
- h) Membership Number;
- i) National ID or Passport;
- j) Nomination Fee Receipt Number;
- k) Curriculum Vitae of the applicant;
- l) Academic and Professional qualifications;
- m) Summary of Party activities engaged in so far;
- n) Statement of his or her commitment to the Party;
- o) Position and the organ in which the candidate seeks to fill;
- p) Proposer and Secondary who shall be fully paid-up members;
- q) Amount of the filing fee accompanying the declaration of candidacy;
- r) Registered voter within the jurisdiction of the office for which he or she is filing;
- s) Candidate signature and date confirming that the information provided on the form is true.

11.8 The Elections Board may require any other information on the form that it deems appropriate to facilitate the filing process.

11.9 The following should be facilitated by the Branch and the Election Board in respect to ensuring the Nomination Forms are complete prior to the commencement date of the Candidate Selection Process:

- a) If a nomination for any party offices or elective positions is filed by many such person or in any case the nominations exceed the number of vacancies, vetting of the candidates shall be held in each branch to determine the best candidate for such office;
- b) If nomination of a candidate for a particular office has been made but the nomination form to such office is not filed in conformity with the provisions of said section, the Branch, County or Region office may call upon the candidate and provide an extension of additional 7 days to ensure all requirements are provided for him/her to be eligible to participate in selection process;
- c) If no person has within the time specified, filed in their nominations with the branch in conformity with the provisions of these rules, no primary shall be held for such office;
- d) The Branch shall submit to the Elections Board within fourteen (14) days, the copies of the biographical notes of the candidates together with his or her Declaration of Candidacy Form;
- e) The candidacies of persons nominated for the selection meeting, shall be filed with the Secretary of the Election Board;
- f) If within the time specified, the Elections Board has failed, with respect to the appointment of the members of the Candidate Selections Committee, no primary shall be held for such office.

11.10 The Elections Board may directly nominate candidates for member of the County Assembly, Governor, Member of the Senate, Member of the National Assembly and County Woman Representative as may from time to time be considered appropriate.

11.11 No later than 7 days after the Declaration of Candidacy Forms has been presented, the Elections Board with the approval of the National Executive Council, shall assemble the Candidate Selections Committee which shall be responsible for vetting of candidates and select a slate of candidates that, if elected, would maintain a good balance of, geography, gender, and minority representation to the fullest extent possible.

11.12 In respect of nominations of candidates at Sub-Branch and Branch, County and National positions, the Elections Board shall scrutinize the Nomination Petitions and subsequent Nomination Forms and other

documents prescribed herein and determine whether the applicant satisfies all the requirements for nomination for the position and respectively certify that the applicant does or does not qualify for nomination and inform the applicant of its determination in writing and publicize the same to the members.

- 11.13 The Elections Board shall thereafter compile and certify the list of all successful candidate and verify and correct the names of any such candidate as the candidate authorizes how their names should appear on the ballot subject to all legal requirements.
- 11.14 The authorized Party signatories shall issue a Nomination Certificate and forward to the IEBC, the Party List in accordance with Sec. 35 of the Elections Act, 2011.

RULE 12 - WITHDRAWAL PROCEDURE OF A CANDIDATE

- 12.1 Any person who has filed a Declaration of Candidacy for an office has the right to withdraw it.
- 12.2 Once a person is declared the nominee for a specified office, either after the canvass of the primary nomination process or the candidate listing ends and they are the only candidate to have filed and prevail, the nominee can resign as a candidate 180 days before the general election by way of submitting to the Elections Board which certified their nomination a written request that they be permitted to withdraw.
- 12.3 No candidate shall be deemed to have withdrawn until a Candidacy Withdrawal Form is signed by such candidate and filed with the Elections Board.
- 12.4 The withdrawal must be completed any time before the end of fourteen (14) day before the nomination, vetting and party listing period ends.
- 12.5 If any candidate withdraws before final formation and ranking of the list, the Elections Board may consider further nominations for the list to ensure numbers and choices on the list are appropriate for the forthcoming election.
- 12.6 If only one person has declared their candidacy to a particular office and the candidate whose candidacy has been so filed thereafter, but prior to the conclusion of the primary, withdraws his name from nomination or for any reason becomes disqualified to hold the office for which he is a candidate, no primary shall be held for the nomination to that office;
- 12.7 If after the date of closing of nominations, and before the final selection is made, any candidate withdraws his or her name from nomination for selection, the Branch Executive Committee may, subject to the approval of the Elections Board, declare such sole constituency candidate, if only one constituency candidate remains after such withdrawal, duly selected.
- 12.8 In case the candidate wins the primaries, they shall not be considered as such and thus the National Executive Council shall have the right to fill in the vacancy left by the withdrawal using other voting methods that may be deemed fit to elect a replacement within the allowed period of time.
- 12.9 The filing fee will not be refunded for any candidate who has withdrawn their candidature.
- 12.10 If it appears to the Executives of any level of the party that formal withdrawal of Party endorsement of a selected candidate is in the interests of the Party, and the candidate is unwilling to withdraw his/her candidature or if it appears to the Elections Board that the actions of the candidate are prejudicial to the interests of the Party and the candidate is unwilling to withdraw his/her candidature, or in addition to any normal legal remedies that may be available to the Party in respect of the provision by a candidate of untrue information in a prescribed form, questionnaire, interview or in response to questions in a "Meet the Candidates" Meeting, the following procedure shall be adopted:

- a) Approval shall be sought by the Branch Executive or County Working Committee from the Elections Board to undertake a meeting to consider withdrawal of endorsement; or
- b) Withdrawal of the Party's endorsement of the candidate shall be at any time before or after the final selection meeting subject to the approval of the NEC;
- c) The Elections Board convene a meeting that the withdrawal of the party-endorsement of the candidate is to be discussed. At least fourteen (14) days prior notice of the meeting, shall be given to the Branch Executives and County Working Committee concerned, and to the Selection Committee;
- d) The Chairs of the Elections Board and the National Executive Council shall convene a meeting with the Chair of the Branch/County concerned to consider withdrawal of the endorsement. The candidate must be informed of the reasons for dissatisfaction with his or her candidacy and given an opportunity to state his or her case; and
- e) A resolution of the Elections Board 's withdrawing the Party's endorsement shall be effective forthwith if passed by a simple majority of those present and voting with such decision being final and binding, and no reasons needing to be given.

RULE 13 - REGISTRATION FOR WRITE-IN CANDIDATES

- 13.1 A person who did not file a Declaration of Candidacy and fulfill their nomination requirements to place their name on the ballot or the party list may try their luck to run for office as a write-in candidate.
- 13.2 Write-in candidacy is possible only if it is a voter's desire to exercise their right according to the party constitution, to nominate their preferred candidate who did not make it to present their nominations before the deadlines or during the "Meet the Candidate" or Nominations Meeting but subject to the acceptance and approval of the Selections Committee.
- 13.3 The voter will need to know how to correctly write the nominee's name and address, the designation of the office sought and any other information which the Secretary deems necessary, in a blank "write-in" space immediately below the candidates listed on the ballot.
- 13.4 The voter is not required to mark an "X" beside the name but rather may write-in any person they wish for any office regardless of whether the person has qualified or not and the office the nominee is aspiring to be elected. If they write the nominee's name in for a different office, their vote will count for that office, instead of the one he/she desired to running for.
- 13.5 If a voter misspells the nominee's name or address, the vote can still be counted, as long as the Scrutineers or polling clerks and the Returning officer can figure out the voter's intent.
- 13.6 The Write-in votes will only be counted, tabulated and certified in a Statement of Vote only for qualified write-in candidates. The candidate nominated by write-in vote in a primary, will need to file a written acceptance of the nomination. No person whose name has been written-in for an office may have his or her name registered as a candidate for the ensuing Candidate Selection unless one of the following is applicable:
 - i. He or she receives for a voter-nominated office, the highest number of votes cast for that office or the second highest number of votes cast for that office,
 - ii. He or she receives votes equal in number to 25 percent of all votes cast for the office at the "Meet the Candidate" Meeting,
 - iii. He or she is subject to the same requirements as other candidates including payment of the stated nominations fees.

- 13.7 If the required nominations paperwork isn't filed by the deadline for the "Meet the Candidate" (Primary) Meeting, the name of the nominee can't be printed on the final party list.
- 13.8 Notwithstanding any provision of this section to the contrary, to qualify as a write-in candidate for any office, a person shall register his candidacy thereafter with the Branch Secretary no later than 14 days after the Party primaries and file a statement of Write-in Candidacy which shall contain the candidate's name, residence address, ID Number and a declaration stating that he or she is a write-in candidate, and the title of the office for which he or she is running.
- 13.9 No person nominated as a write-in candidate for any office under the provisions of this section, shall be endorsed if the person has been disqualified subject to the provisions of the Party Constitution and these rules.
- 13.10 Notwithstanding any other provision of these rules, a person may not be a write-in candidate at the general election.

RULE 14 – CALL FOR NOMINATIONS AND THE CONDUCT OF PARTY PRIMARIES

Categories of Nominations and Party Primaries

- 14.1 The party nominations and primaries activities shall comprise the following:
- a) The party primary elections for the selection of the Party Presidential Candidate.
 - b) The party primary elections for the selection of candidates to vie for the following electoral positions in the General Elections and in By-Elections:
 - i. The County Governor and Deputy Governor;
 - ii. The Senator;
 - iii. The County Woman Representative to the National Assembly;
 - iv. The Member of the National Assembly; and
 - v. The Member of the County Assembly.
 - c) Elections to the Party Lists pursuant to Article 90 of the Constitution of Kenya, 2010 and Section 34 of the Elections Act, 2011.

Notifications of Nominations and Party Primaries

- 14.2 All primaries shall be conducted and concluded by the second Tuesday in August of the year preceding at least eighteen (18) months before the general election is held and all disputes related to nomination and election must be resolved twelve (12) Months before the date of election.
- 14.3 In its mandate to identify and nominate party members aspiring to fill in any positions in the party or in respect of any nomination to be held for Presidential, Gubernatorial and his/her Deputy, Civic/ County Assembly and Parliamentary/National Assembly, Senator, Women Representative Elections, the Nominations and Elections Board, upon a resolution by the National Executive Council shall give notice to members and Call for Nominations.
- 14.4 Concomitantly, the written notice shall be published in the Party Spectrum, newspaper advertisements, the E-newsletter, on the Party's website and in at least two daily newspapers with national circulation and one announcement vide the electronic media throughout Kenya, or any other publications approved by the party for general circulation, to inform the members regarding the forthcoming Party primaries.
- 14.5 In the case of a by-election or in any special case which in the opinion of the Branch Executive Committee warrants necessary, with the approval of the National Executive Council Chair, the period of

notice prescribed in these Rules may be reduced or extended at the discretion of the Elections Board and upon the recommendation of the National Executive Council.

14.6 The notice issued by the Party under sub-rule (14.4) shall contain such details as the Board shall deem necessary and state-

- a) the date and deadline fixed for the receipt of nominations
- b) the dates and venues of the primaries for each electoral area;
- c) the persons eligible to participate in the exercise;
- d) the procedure and duration of the exercise;
- e) the issuing of nominations petitions forms;
- f) the timeline to return the duly filled forms to the branch;
- g) the verification of all the required documentations in accordance with party requirements;
- h) the Party official(s) who shall be responsible for the exercise;
- i) the date by which eligible persons must perform any act in relation to the exercise;
- j) the date by which Party officials who wish to participate in the Party primaries must resign from their Party offices;
- k) the mode of voting as either manual or by a computer-enabled means, or by a combination of both;
- l) the fees, if any, that should be paid and details of how the payment should be effected;
- m) where any aggrieved Party may file any grievances regarding the exercise;
- n) the Party official(s) who shall hear and determine any appeal in relation to the exercise; and
- o) any other relevant detail pertaining to the exercise.

14.7 A notice issued by the NEB for primaries for presidential, County Governor, National Assembly, Senate County Woman Representative to the National Assembly, County Assembly shall be in Forms *set out under Annexure VI* and a notice issued for party list shall be in Forms *set out under Annexure IX*.

Application for Vacant Positions for Party primaries

14.8 Upon receiving the invitation from the party to participate in the nominations process, an aspiring candidate shall submit to the NEB, a duly filled Declaration of Candidacy Form in accordance to Rule 11 and as *set out in the annexure V* together with -

- a) a signed commitment, in the prescribed Form *set out in the annexure III*, to the Party's constitution, Party Code of Conduct, the electoral code of conduct and the values, Party Manifesto, and principles of the Party;
- b) a self-declaration duly commissioned by a commissioner for oaths as prescribed under the Leadership and Integrity Act, 2012 (No. 19 of 2012);
- c) copies of the candidate's national identity card or valid passport, certified by a commissioner of oaths;
- d) certified copies of the candidate's academic qualifications from the relevant institutions;
- e) evidence of registration as a life member of the Party; and
- f) a receipt or other evidence of payment of nomination fees to the Party's designated bank account, clearly identifying the aspiring applicant.

Where the NEB requires the applications to be submitted electronically; the digital form may be adjusted as shall be deemed necessary to facilitate this mode of application.

- 14.9 Where an aspiring candidate intends to be nominated on the ground that the candidate is a person with disability, the candidate shall, in addition to the requirements specified under sub-rule (14.8), submit a certification confirming his or her registration with the National Council for Persons with Disabilities.
- 14.10 A person who wishes to be nominated to represent the youth shall be a person who has attained the age of eighteen years, but has not attained the age of thirty- five years and such person shall provide documentary proof of his or her age.
- 14.11 The NEB reserves the right to verify the authenticity on any document submitted to it, with the relevant issuing entity.
- 14.12 The branch shall submit to the Nominations and Elections Board, all duly filled nomination forms for the branch candidates and payment receipts in respect of all the elective seats.

RULE 15 - VETTING AND INTERVIEWING OF PARTY AND CIVIC CANDIDATES.

- 15.1 Vetting of persons seeking to become the Party's candidates for the positions of President and Deputy President, Governors and Deputy Governors, Members of the Senate, Members of the National Assembly, County Woman Representative to the National Assembly, and Members of the County Assembly, shall be conducted by the Nominations and Candidate Selection Committee in consultation with the NEB at the Branch, County and National levels.
- 15.2 All vetting and interviews shall be in accordance with the Constitution of the Republic of Kenya, the political Parties Act, 2011, the Elections Act, 2011, the County Government Act, 2012, the Party Constitution and Party Nomination and Election Rules and Procedures.
- 15.3 For the performance of the duties, each Returning Officers and other election officers actually engaged therein shall receive such reasonable compensation from the party as is approved by the Election Board.
- 15.4 All necessary expenses incurred by Committee under the provisions of sub-rule 15.3 shall be paid by the party.
- 15.5 The Selections Committee and the NEB shall take into account the following when considering the suitability of a Candidate-
- a) demonstrated loyalty to the party, its leadership and organs;
 - b) the contribution of the candidate to the party activities and ideology;
 - c) ability to represent the area for which the candidates seek nomination;
 - d) the constitutional criteria for election for the position to which the application relates is met;
 - e) ability to articulate national issues and propagate policies that serve the interest of the society;
 - f) the past and current record of the Candidate, including prior diligence and commitment to the Party;
 - g) whether the Candidate meets the conditions set in these rules for eligibility to contest in any party or elective positions as prescribed under Rule 7;
 - h) has a written vision and mission or personal manifesto alight with the party manifesto for implementing socio-economic programs for the people and the government of the Republic of Kenya;
 - i) whether the candidate has any pending complaints or outstanding fines imposed by the Party or other relevant information received from any person or body, including the Party's Disciplinary Committee;
 - j) any pending or concluded criminal cases before a court of law against the Candidate;
 - k) whether any candidate and or his/ her supporters have employed violence, threats to violence, or intimidation, including violence against persons with disabilities or sexual and gender-based violence, as a means for political mobilisation against opponents; and

- l) information gathered in the course of personal interviews with any adversely affected candidate as well as his or her records.
 - m) And other matters as may be provided under the constitution or specific party policies.
- 15.6 All information obtained by the NEB during any personal interviews, where these are conducted, and records of the candidate being vetted shall be confidential.
- 15.7 Every candidate whose suitability to participate in Party primaries is in question shall by notice be given an opportunity to respond to any allegations against him or her and the said notice shall include a summary of complaints, if any, against the candidate. The NEB shall reserve the right to determine the manner in which the complaint may be addressed.
- 15.8 The Nominations and Elections Board shall vet all presidential, senator and governor aspirants at a venue and time determined in accordance with the Party's electoral calendar.
- 15.9 The NEB shall as soon as possible after the vetting process publish on its website and in print and electronic media of wide circulation the names of candidates who have been successfully vetted to participate in the Party primaries for each electoral position.
- 15.10 The vetting of all parliamentary and county assembly candidates shall be conducted by the Nominations and Candidates Selections Committees in the respective sub-branch, branch and County elections.
- 15.11 The Branch Executive Committee and the NEB shall no more than twenty-one days (21) to nomination, give notice to each candidate approved after the close of the Declaration of Candidacy, of the place as might be convenient to voters to access, date and time fixed for the primaries, interviewing and selecting the party candidates.
- 15.12 The Selections Committee shall undertake a comprehensive questioning and appraisal of the candidates in all "Meet the Candidate" Meetings and the primaries to determine suitability and may either discuss members views between interviews or at the conclusion of interviews and before decisions are made.
- 15.13 The Selection Committee shall make the checks of a candidate's background and of the referees provided during the nominations petition and the declaration of candidacy.
- 15.14 The interviews shall in particular, involve a close examination of the candidate's commitment to serve the people he or she seeks to represent and determine their understanding by candidates of the Vision and Values of the Party as provided for in the party constitution.

RULE 16 – NOMINATION OF PARTY LIST MEMBERS

General Requirements for Nomination to Party Lists

- 16.1 The National Executive Council shall present to the Independent Electoral and Boundaries Commission, a Party List of Candidates (hereinafter "the Party List") selected in conformity with the laid down requirements, procedures and the laws:
- a) The Constitution 2010,
 - b) The Political Parties Act, 2011,
 - c) The Elections (Amendment) (No. 2),
 - d) The Elections (Amendment) Act, 2012,
 - e) The Elections Act, 2011 as amended by The Statute Law (Miscellaneous Amendment) Act, 2012,
 - f) The Party constitution and Nomination and Election Rules and Procedures,

- g) Any other relevant laws that may apply from time to time.

16.2

- a) The Party shall nominate members to contest in the Presidential, Parliamentary, Gubernatorial or County Assembly elections in the Country, or to be nominated to Parliament and County Assemblies;
- b) Candidates nominated by the Party shall be members of the Party who subscribe to the Party Constitution, ideology, principles and policies;
- c) Any individual desiring to be nominated as a candidate for Presidential, Parliamentary, Gubernatorial or County Assembly elections on the Party ticket shall pay nomination fee as determined by the NEC and such other fees as may be required under written law to be payable for the purpose of the nominations exercise and elections;
- d) The Party shall sponsor only one candidate for every elective position in any given elective area;
- e) Candidates nominated on the Party ticket shall adhere to both the party's and National Electoral laws and rules;
- f) The party will make a list of candidates to be nominated for both County and National governments.
- g) The Party shall make nomination rules and regulations for all levels as published in the Party Regulations and Procedures.
- h) The Party will prepare the Party Members list for the electoral commission for nominations of its members as provided in the Party's nominations rules, electoral laws and regulations and in this Constitution.
- i) There shall be a rulebook on the nomination and elections for;
 - i. Elections of officials to the governing body;
 - ii. Nomination of members to party lists and preparation of party lists; and
 - iii. Nomination of members for general elections (party primaries)
- j) The Nominations and Election Rules and procedures shall be approved by NEC for implementation by NEB.
- k) NEB may propose amendments to the rules for approval by NEC or NEC may also propose amendments. No amendments shall be valid three (3) months to any election or nomination or preparation of party lists.
- l) Without prejudice to other eligibility criteria provided in this constitution, consideration for inclusion in the party list shall entail the following:
 - i. A fully paid-up life member;
 - ii. be involved in identifying and introducing candidates for election;
 - iii. Actively involved in party activities, recruitment of members and resource mobilization

16.3 The Constitution of Kenya under Article 90 further expressly provides that:

- a) Elections for the seats in Parliament provided for under Articles 97(1) (c) and 98 (1) (b), (c) and (d), and for the members of county assemblies under 177 (1) (b) and (c), shall be on the basis of proportional representation by use of party lists.
- b) The Independent Electoral and Boundaries Commission shall be responsible for the conduct and supervision of elections for seats provided for under clause (1) and shall ensure that -

- i. each political party participating in a general election nominates and submits a list of all the persons who would stand elected if the party were to be entitled to all the seats provided for under clause (1), within the time prescribed by national legislation;
 - ii. except in the case of the seats provided for under Article 98 (1) (b), each party list comprises the appropriate number of qualified candidates and alternates between male and female candidates in the priority in which they are listed; and
 - iii. except in the case of county assembly seats, each party list reflects the regional and ethnic diversity of the people of Kenya.
 - c) The seats referred to in clause (a) shall be allocated to political parties in proportion to the total number of seats won by candidates of the political party at the general election.
- 16.4 In its mandate to identify and nominate party members aspiring to fill in any party list in respect of County Assembly and Parliamentary/National Assembly, Senator, the Nominations and Elections Board (NEB), upon a resolution by the National Executive Council (NEC) shall give notice to members and call for applications.
- 16.5 Concomitantly, the written notice shall be published in the Party Spectrum, newspaper advertisements, the E-newsletter, on the Party's website and in at least two daily newspapers with national circulation and one announcement vide the electronic media throughout Kenya, or any other publications approved by the party for general circulation, to inform the members regarding the forthcoming Party List nominations.
- 16.6 The NEB shall receive all applications by persons wishing to be elected to any Party list, sort the applications into the different categories and after due verification, vetting and shortlisting therefore, the NEB shall -
- a) Forward the shortlisted applicants for nomination to the National Assembly and the Senate Party Lists, to the National Party Lists Committee to elect persons to the National Assembly and the Senate Party lists in the order of priority;
 - b) Forward the different shortlists to the respective County Party Lists Committees to elect the County Assembly (Gender Top-Up, Marginalised, Youth) Party List nominees, in order of priority, as shall be guided for every county; PROVIDED that the Committee may not include the names of persons who do not come from the applicable county nor persons who do not appear on the shortlist.
- 16.7 The NEB will prepare the party list and have it signed by the authorized officials in consultation with the Supreme Advisory Committee of the Party for onward submission to the NEC which should be ready for onward transmission at least two months prior to the day designated by the IEBC.

The Party List-Special Seats

- 16.8 The Shikana Frontliners for Unity Party shall submit the following party lists to the IEBC;
- a) The National Executive Committee shall nominate candidates for election under Article 197 (1) (a) of the Constitution of Kenya 2010 and submit to the Independent Electoral Boundaries Commission a Party List in accordance with Article 177 (1) (b) and (c) of the Constitution of Kenya 2010. The party list shall include a certification in the manner prescribed by the Commission;
 - b) A person nominated under the foregoing provisions be a person who is a member of the Party on the date of submission of the party list to the Commission;
 - c) The National Executive Committee shall nominate candidates for election under Article 97 (1) (a) and (b) of the Constitution of Kenya 2010, and submit a Party List to the Independent Electoral Boundaries Commission in accordance with Article 97 (1) (c) of the Constitution of Kenya;

- d) The National Executive Committee shall nominate candidates for election under Article 98 (1) (a) of the Constitution of Kenya 2010 and submit to the Independent Electoral Boundaries Commission a Party List in accordance with Article 98 (1) (b) and (c) of the Constitution of Kenya. The party list shall comprise the appropriate number of qualified candidates and alternates between male and female candidates in the priority in which they are listed except in the case of the seats provided for under Article 98 (1) (b) of the Constitution;
- e) The party list shall reflect the regional and ethnic diversity of the people of Kenya save in case of county assembly seats;
- f) The party list shall not contain a name of a candidate nominated for an election;
- g) The qualifications and disqualifications prescribed for Members of Parliament and County Assembly shall apply to the Nomination for special seats;
- h) The party list referred to above shall be submitted in order of priority.

County Party Lists Committees

- 16.9 The Party List Committees for each County shall comprise of the following:
- a) The Chairperson of the County Coordinating Committee (Chair)
 - b) The chairperson of the County Women Chapters.
 - c) The chairperson of the County Youth Chapters.
 - d) The chairperson of the Marginalised Chapters.
 - e) The chairperson of the Branch Disability Chapters.
 - f) All NEC and NEB members from the County;
 - g) Four persons appointed by the NEB;
- 16.10 The County Party Lists Committee for each of the 47 counties shall provide for the election of Party list nominees for the Gender Equality and Marginalised, the Party Nomination lists for the County Assembly as contemplated in Article 177(1) (b) and (c) of the Constitution of Kenya.
- 16.11 The number of nominees for the Party List from each County shall be the number of Branch candidates selected and each must meet the requirement of ethnic diversity, not more than one nominee in the Party List shall be from the same ethnic community.
- 16.12 Where there is no serving member of the National Executive Committee in a County, the Party Leader shall appoint such other suitably qualified person to be the chairperson of any County Party lists Committee giving priority to the committed and loyal Party elected members from Parliament including members of the National Assembly, County Woman Representative in the National Assembly and Member of the Senate.
- 16.13 The County Party Lists Committees shall be responsible for the election of candidates to the County Assembly (Gender Equity) Party Lists; and the election of candidates to the County Assembly (Marginalised including Persons with Disability and Youth) Party Lists.
- 16.14 Every County Party List Committee shall sit to elect members to the County Party list on a date, time and place designated by the NEB for this purpose.
- 16.15 The County Party List Committees shall be convened by the Chairperson. He may vote in meetings only in case of a tie or where the vote is by ballot. The quorum for the committee shall be 75% of its membership.

- 16.16 The NEB shall appoint and nominate such suitable person, not being a member of the County Party Lists Committee, to serve as a rapporteur for the elections. The rapporteur shall be the ex-officio secretary of this committee for purposes of recording the minutes of the proceedings of the committee meeting, preparing the list and transmitting the same to the NEB.
- 16.17 The NEB shall may make provision, where it deems necessary, to record the proceedings of the County Party Lists Committee through electronic means. The recording of the proceedings shall be undertaken by the rapporteur.
- 16.18 After the elections, a photographic image of the agreed lists, as signed by the chairperson of the committee and the rapporteur, shall be taken and forwarded to the NEB immediately after the election by the committee members and the hard copies also delivered not later than the day following the elections; PROVIDED that the Committee may not nominate persons, who do not come from the applicable county nor persons who do not appear on the NEB shortlist.
- 16.19 The NEB shall, after receiving the Party lists from the County Party Lists Committees and verifying that they are in compliance with these rules forward the lists to the National Party Lists Committee.
- 16.20 Where the NEB refers a list back for reconsideration in a similar manner, the relevant County Party Lists Committee shall amend the list in light of the NEB's reservations and shall re-submit it to the NEB for approval within 2 days, failing which the NEB shall amend the list for onward transmission to the National Party Lists Committee.

County Assembly (Gender) Party List

- 16.21 Party List for nomination of County Assembly (Gender) Party List as per [Art. 177(1)(b) of the Constitution] shall:
- Be 47 Lists, each representing a county and separately consisting of women nominees to the County Assembly reflecting the number of wards in each of the respective counties;
 - Have similar qualifications as those required for candidates contesting for elections as members of the County Assembly;
 - Ensure that the constitutional threshold of 2/3rd gender is met and alternate between women and men candidates; the gender with less numbers than required by the Constitution of Kenya will be prioritized;
 - Among all the nominees, have various special interest groups represented. There shall be at least members representing minority ethnic, religious and cultural communities in the County, an old member of the society, a youth, a woman, a person with disabilities and a person representing workers in the County.

County Assembly (Marginalized and Minorities Group) Party List

- 16.22 Party List for nomination of County Assembly (Marginalized and Group) Party List as per [Art. 177(1)(c) of the Constitution] shall:
- Be 47 Lists, each representing a county and separately consisting of marginalized group nominees to the County Assembly reflecting the number of wards in each of the respective counties;
 - Have similar qualifications as those required for candidates contesting for elections as members of the County Assembly;
 - Ensure that the constitutional threshold of 2/3rd gender is met and alternate between women and men candidates; the gender with less numbers than required by the Constitution of Kenya will be prioritized;

- d) Among all the nominees, have various special interest groups represented. There shall be at least members representing minority ethnic, religious and cultural communities in the County, an old member of the society, a youth, a woman, a person with disabilities and a person representing workers in the County.

National Party Listing Committee

- 16.23 The National Party Listing Committee shall comprise of the following members and each shall have one vote:
- a) The Party Leader – (Chairperson)
 - b) The Deputy Party Leader;
 - c) The National Chairperson;
 - d) The Secretary General;
 - e) The Chairperson of the Nominations and Elections Board;
 - f) The Chairperson of the National Executive Council;
 - g) The Chairperson of the National Governing Board;
 - h) The Chairperson of the National Parliamentary Caucus;
 - i) The Chairperson of the County Caucus;
 - j) The Chairperson of the SFUP Youth Groups;
 - k) The Chairperson of the SFUP Women Groups;
 - l) The Chairperson of the SFUP Disability Groups;
 - m) The Chairperson of the National House of Elders;
- 16.24 The National Party Lists Committee shall be convened and chaired by the Party Leader and where the chairperson is unable to attend a meeting, the next in seniority shall preside at the meeting and where both are unable then a chair shall be selected from the members present, exercising the usual duties of chairperson. He may vote in meetings only in case of a tie or where the vote is by ballot. The quorum for the committee shall be 75% of its membership.
- 16.25 The National Party Listing Committee shall conduct the election of persons to the party lists for National Assembly, the Senate and the County Assemblies' Lists from all applications received from all Branch and County Nominations and rank the nominees from the Ward, Constituency, County and National Nominations in order to establish the Final Party List of candidates for the purpose of Gender equity and the marginalized; PROVIDED that the Committee may not nominate persons, who do not meet the qualifications provided for in these rules.
- 16.26 In determining whom to nominate for the County Party list positions, the Committee shall not include persons who do not come from a County for which nominees are being considered and must consider all the constituencies within the county.
- 16.27 Where the National Party Listing Committee elects to include some of the nominees already included on the party lists forwarded by the County in the top positions for Gender Equity lists and the Party list for the marginalized, the committee shall include the next person who did not make it to the list in the order of priority, from the additional list that shall have been provided by the County Party Listing Committees.
- 16.28 The decision of the National Party Listing Committee as to ranking shall be final and binding on all candidates and Party members.

- 16.29 The NEB may be convened to make decisions on behalf of the Party Listing Committee if, in the Party Leader's opinion, a matter regarding the Party List is of such urgency that it is not possible or reasonable to delay making the decision until a full meeting of the Committee can be convened.
- 16.30 The National Party Listing Committee shall submit the Party Lists, under the hand of the Chairperson of the NEB, to the NEC.
- 16.31 After consideration of the material submitted, the NEC shall accordingly enter the name of the winner on the Party list and advise the Branches or Counties of the final list of the candidates for various elective or party positions. Any approval or otherwise shall be at the absolute discretion of the National Executive Council as recommended unless otherwise.
- 16.32 Only in exceptional circumstances, the List may be amended by the Elections Board at any time in consultation with the National Executive Council until it is submitted to the IEBC for a General Election.
- 16.33 Following completion of the Party Listing by the Committee, such List shall be adopted as the Party's List for the next General Election and the names shall not be removed except by a decision of the Independent Electoral and Boundaries Commission (IEBC) Complaints and Dispute Resolution Committee or an order of the High Court.
- 16.34 The Secretary General shall receive the final report from NEC who shall disclose this information to National Delegates Convention held before the General Election for which the list was formed.
- 16.35 All information belonging to the nominated candidates shall be held in the strictest confidence by NEB and all material shall be securely archived in the National Headquarters of the Party.

National Assembly Party List

- 16.36 Party List for nomination to the National Assembly as per [Art. 97(1)(c) of the Constitution] shall:
- a) Have twelve (12) nominees;
 - b) Have similar qualifications as those required of candidates contesting for elections as members of the National Assembly;
 - c) Include nominees to represent the youth, persons with disabilities and workers and any other special interests;
 - d) Have a national outlook, by meeting regional diversity and from different ethnic communities and counties;
 - e) Ensure that the constitutional threshold of 2/3rd gender is met and alternate between women and men candidates; the gender with less numbers than required by the Constitution of Kenya will be prioritized;
- 16.37 Where two of the nominees in the list are from the same ethnic community, or gender or region they shall not immediately follow each other on the list.

Senate (Women) Party List

- 16.38 Party List for nomination of Senate (Women) as per [Art.98 (1)(b) of the Constitution] shall:
- a) Have sixteen (16) women nominees;
 - b) Have similar qualifications as those required of candidates contesting for elections as members of the National Assembly;
 - c) Have a national outlook, by meeting regional diversity and from different ethnic communities and counties;

16.39 Where two of the nominees in the list are from the same ethnic community, or region they shall not immediately follow each other on the list.

Senate (Youth) Party List

16.40 Party List for nomination of Senate (Youth) as per [Art.98 (1)(c) of the Constitution] shall:

- a) Have two (2) nominees being one woman and one man.;
- b) Have similar qualifications as those required of candidates contesting for elections as members of the Senate;
- c) Have a national outlook, by meeting regional diversity and from different ethnic communities and counties;
- d) The two nominees must be between 18 and 35 years of age

16.41 Where two of the nominees in the list are from the same ethnic community, or gender or region they shall not immediately follow each other on the list.

Senate (Person with Disability) Party List

16.42 Party List for nomination of Senate (Persons with disability) as per [Art.98 (1)(d) of the Constitution] shall:

- a) Have two (2) names of qualified persons with disability nominees, being one woman and one man;
- b) Have similar qualifications as those required of candidates contesting for elections as members of the Senate;
- c) Have a national outlook, by meeting regional diversity and from different ethnic communities and counties;
- d) The two nominees must be certified as persons with disabilities by the National Council for Persons with disabilities.

16.43 Where two of the nominees in the list are from the same ethnic community, or gender or region they shall not immediately follow each other on the list.

PART IV - RULES ON VOTING, RANKING OF CANDIDATES, CAMPAIGNS AND DISPUTE RESOLUTION

RULE 17 – VOTING METHODS FOR CANDIDATE SELECTION

Methods of Conducting Party Primary Elections

- 17.1 For purposes of selecting party-endorsed candidates, the party primaries shall be held in the following manner:
- a) In the conduct of primaries for the party's candidate for the post of the President and the Deputy President of the Republic of Kenya, the primary shall be held at the National Delegates Convention of the party specially convened for that purpose;
 - b) In the conduct of primaries for the party's candidate for the post of Governorship and Deputy Governorship, Senator and Women Representatives of a County, the primary shall be held at the County Delegates Conference of the party specially convened for that purpose;
 - c) In the conduct of primaries for the party's candidate for the post of member of the National Assembly, the primaries shall be held at the Constituency headquarters; and
 - d) In the conduct of primaries for the party's candidates for the post of member of the County Assembly, the primaries shall be held at the Constituency headquarters.
- 17.2 These Rules govern the election of the Party's candidates, seeking to run in the General Elections or By-Elections for the following positions:
- a) President and Deputy President;
 - b) Governor and Deputy Governor;
 - c) Member of the Senate;
 - d) County Woman Representative to the National Assembly;
 - e) Members of the National Assembly;
 - f) Member of County Assembly.
- 17.3 Decision as to which method of voting to employ at all meetings of the Delegates and Special Conferences, Regional Representatives Councils, County, Branch and Sub-branch meetings and their respective Executive Committees, the party primaries and elections for nominations to Party Lists, shall be conducted using the following methods (and in the following order of priority) -
- a) Unanimously by Consensus;
 - b) Delegates system;
 - c) Ranked Preferential Ballot;
 - d) Direct Nominations;
 - e) Vote Tabulating System;
 - f) Universal Suffrage; or
 - g) any other method of voting acceptable to the delegates for the election of or nomination of candidates.
- 17.4 Where deemed absolutely necessary, the party may request the IEBC to conduct and supervise the nomination of Candidates.
- 17.5 The Branch (Constituency) shall be the basic Electoral College mandated to conduct the vetting, voting and selection of the party-endorsed candidates.

- 17.6 The NEC shall by a resolution determine the mode of election in any electoral area in the Republic of Kenya provided that NEB shall publish such resolutions not later than twenty- one days to the date of party primaries.
- 17.7 The Elections Board shall schedule, plan and communicate with all its membership the dates and times and criteria for conducting the party primaries; if the day fixed for any party primary or candidate selection falls on a Sunday or a legal holiday or on a day on which the tenets of a religion forbid secular activity, the party primaries shall be held on the next succeeding day other than a Sunday or a legal or such other religious holiday.
- 17.8 The Secretary, as the case may be for a Branch, County or Region, or such other authority of the party, shall no later than thirty (30) days in consultation with the National Executive Council and NEB, call for a meeting or convention to determine the conduct of the nominations and the primaries. Before the party holds such meeting, the secretary of such meeting shall provide the date, time, location and purpose of the meeting.
- 17.9 If paper ballots are required for the vote on any office or elective position, the Elections Board, shall print the paper ballots and set the general rules to be followed for their use in the elections which should conform to those provided herein.

By Consensus

- 17.10 Where an elective post has attracted more than one candidate, the candidates, the Party officials, the community leaders and the party members from that electoral area, may initiate a consensus-building process.
- 17.11 The parties to a consensus-building process may arrive at any of the following decisions:
- a) One candidate to represent the Party at the elections; or
 - b) Two strong candidates whose names are to be submitted to the NEB, to determine the candidate, to run on the Party ticket.
- 17.12 When determining the consensus candidates, the following shall be taken account:
- a) That the selected consensus candidates qualify to contest for the position, in accordance with the applicable laws;
 - b) That the selected consensus candidates are the best suited to represent the Party in the electoral area.
- 17.13 Following the consensus-building process the candidates and other parties to the process shall sign an agreement indicating the outcome of the consensus-building process.
- 17.14 All the candidates to the consensus agreement shall sign a formal resolution giving effect to the agreement.
- 17.15 The Party will refund any application fees paid by the candidates who have not been selected by consensus.
- 17.16 The candidates who withdraw their candidature in favour of another shall give a formal undertaking not to participate in the ensuing elections either as independent candidates and/or on the tickets of other political parties.
- 17.17 Where the Party is privileged to make appointments and/or nominations to certain positions and the party list, the Party, in making such appointments and/or nominations, shall consider the appointment of such candidates who will have withdrawn in favour of a Party candidate under this method, provided that these candidates qualify for the position.

Delegates System

- 17.18 A Branch or County or National Delegates may opt to select its candidates or conduct Party primary elections, not by way of Unanimous Consensus or Preferential Voting but through a vote by the party delegates system.
- 17.19 For the purposes of electing National Officials, the National Delegates Convention shall be guided by these rules and by any other relevant provision of the party Constitution.
- 17.20 For purposes of conducting elections by delegates, the Elections Board shall ensure that all paid up SFUP members are entitled to one vote during the nomination and there shall be a register of all Party members in all Wards, Constituencies and Counties as the case may be.
- 17.21 Where Party primary elections are conducted by the vote of the party delegates system the Elections Board shall ensure that;
- a) only the delegates whose names appear in the National Delegates Voters Register and are present at the Convention shall be eligible to vote;
 - b) there is a quorum before the commencement of business of elections in accordance with the Party Constitution and these Rules;
 - c) the elections at the National Delegates Convention shall be by secret ballot or any other method approved by the delegates in session;
 - d) in the event of an equality of votes at any voting, there shall be a second voting, after which the Chairperson shall have a deciding vote;
 - e) the polling/tallying station shall be a location selected by NEB in every ward, branch or county where the elections are being conducted.
- 17.22 To qualify for seating as a delegate:
- a) each member attending a meeting or is a delegate to a convention or participate in Party primaries as a voter must be an individual member in good standing of the Party and his or her name appears on the Party's Register of Voters developed from the Party Member's register as certified by the Registrar of Political Parties;
 - b) each voter shall be entitled to exercise only one vote regardless of the number of positions held in the Party;
 - c) the persons selected by the party to serve as delegates to a convention shall be deemed to have been lawfully selected as such delegates;
 - d) the formulas for the purpose of calculating credential entitlements for conventions, shall be based on membership lists as at the end of the previous membership year, or as at 120 days prior to the convention, whichever is the greater;
 - e) all delegates to a meeting or Convention shall register as delegates which must be received by the National Executive Council at least 120 days before the date and time of each respective Convention. A person whose name does not appear on the registry list shall not be eligible to vote in any, primary or elections;
 - f) only registered and paid members who are duly elected as delegates at the branch level shall attend and participate in the elections of the party's national officials during the National Delegates Convention;
 - g) the names of the delegates attending the meeting must be in the register of members of the party;

- h) delegates attending the meeting to elect national party officials shall be required to produce a valid party membership card, a valid national identity card or passport and a national voter's card;
- i) at least one copy of the party rules regulating the manner of selecting the delegates shall be shared to all branches;
- j) as these rules provide, a Branch has the responsibility for choosing its delegates at an Annual General Meeting and thus retains the option of not sending a full delegation to a Convention;
- k) the person who is a delegate to a National, Special or Regional Convention or Branch meeting and is unable to be personally present, may appoint a substitute to attend and vote in his or her place and must be an individual member in good standing of the Party;
- l) in the event that a Branch elects a reserve list of delegates then those shall be used for replacements but not necessarily substitutions. The original delegate has the power of appointment substitute subject only to approval of the Chair;
- m) the original delegate must nominate and actually sign the nomination of a substitute in writing, who must consent to taking the position. The Chair of the level concerned must approve the substitution in writing.

17.23 Persons eligible to vote in this election shall be party grassroots officials being as follows:

- a) At the Polling Station (Membership)
 - i. 20 delegates elected as polling station party officials,
 - ii. 20 delegates elected as for the Women's Chapter,
 - iii. 20 delegates elected as for the Youth Chapter,
 - iv. 20 delegates elected as for the Party Disability Chapter.
- b) At the Ward (From each Polling Station)
 - i. 20 delegates elected as Ward Party officials,
 - ii. 20 delegates elected as for the Women's Chapter,
 - iii. 20 delegates elected as for the Youth Chapter,
 - iv. 20 delegates elected as for the Party Disability Chapter.
- c) At the Branch (From Each Ward)
 - i. 20 delegates elected as Branch Party officials,
 - ii. 20 delegates elected as for the Women's Chapter,
 - iii. 20 delegates elected as for the Youth Chapter,
 - iv. 20 delegates elected as for the Party Disability Chapter.
- d) At the County (from each Branch)
 - i. 20 delegates elected as Count Party officials
 - ii. 20 delegates elected as for the Women's Chapter,
 - iii. 20 delegates elected as for the Youth Chapter,
 - iv. 20 delegates elected as for the Party Disability Chapter.
 - v. all current elected and nominated Party members of the County Assembly,
 - vi. current elected and nominated Party members of the National Assembly,
 - vii. current elected and nominated Party members of the senate.

For purposes of this provision, every delegate under this clause shall only vote in the Ward where he/she is registered as a voter.

17.24 For National Delegates Convention, each Branch including Campus Club, Youth, Women, Minority and Disability Groups unless otherwise determined by the National Executive Council shall be entitled to:

- a) Three (3) delegates for 30 party members or less - At least one third must be of either gender;
- b) Two (2) additional delegates for each additional 20 party members or major fraction thereof.
- c) Two (2) representatives of special interest groups, including at least 1 representative of persons with disability and 1 representative from the minority.

17.25 Each affiliate members shall be entitled to:

- a) Two (2) delegates for 30 party members or less; and
- b) One (1) delegate for each additional 20 party members or major fraction thereof.

17.26 The following shall be entitled to delegate credentials:

- a) All former leaders of the Party;
- b) All SFUP Members of Parliament;
- c) All members of the Elected Leaders Caucus;
- d) All members of the National Governing Board and National Executive Council;
- e) The Chairpersons of all committees and organs created by the National Executive Council;
- f) A person who attends as a delegate by right of office held, being Branch Chair, or any other office for which attendance at the meeting is mandated under these rules shall attend in that capacity and not as a member of an elected or nominated delegation of a Branch;
- g) Chairs and Secretaries of Branch Executive Committee have the right to attend any Executive meeting within their respective Counties or Regions and National whenever it becomes necessary to do so.

17.27 The quorum for the National Delegates Convention for the purpose of conducting elections for National Officials shall be half (50%) of the members eligible to attend and participate in the elections.

Ranked Preferential Ballot

17.28 A **Ranked Preferential Ballot** may be chosen as a voting method and shall be used as follows:

- a) A Ballot paper shall be distributed with each candidate listed in alphabetical order;
- b) No name of any candidate shall be printed on any official ballot at any election except the name of a candidate approved by the Elections Board to enter into the party list;
- c) Each delegate shall be required to number (rank) the candidates on the voting paper in order of that delegate's preference for the ballot to be valid;
- d) The ranking of the candidates for consideration by the Selections Committee, shall be undertaken by the Scrutineers or Counting Clerks using the counting method described below;
 - i. The Scrutineers or Counting Clerk shall count the first preference vote for each of the nominated candidates who shall not be more than 10 candidates;
 - ii. The candidate who obtains more than 50% of the valid votes shall be the top-ranking candidate and the successful candidate will be the one who secures one half or more of the valid votes cast;
 - iii. In the event that after the first ballot count no candidate secures one half or more of the valid votes cast, the candidate with the least number of votes will be eliminated from the ballot and a further ballot held with the remaining candidates;

- iv. The next highest preference votes expressed by those who voted for the removed candidate shall be allocated to the remaining candidates. This process will be repeated until one candidate obtains more than 50% of the valid preference votes and they shall be the top-ranking candidate;
- v. In the event of more than one candidate receiving the lowest number of votes and if elimination of those candidates would leave at least three in the next succeeding ballot, both or all of those tying for the lowest vote shall be eliminated;
- vi. A new count will then commence to determine the second-ranked candidate. Commencing again with the first preference votes for all candidates, the highest-ranking candidate will be removed and their second preferences will be allocated to the remaining candidates.
- vii. A candidate who then obtains more than 50% of the votes shall be declared the second-ranked candidate;
- viii. In the case where a deputy is to be elected (including Deputy President and Deputy Governor, or in the National Officials) in the same meetings or convention, then the second ranking candidate will immediately assume that position;
- ix. If no candidate achieves that number of votes, the balloting process above shall be repeated until all candidates are ranked and one candidate is successful in securing one half or more of the votes cast, and that person shall be declared by the Chair to be the selected candidate for that Branch or County;
- x. In the event of two or more candidates obtaining the same and the highest total number of votes at any stage of the vote counting, in a primary held to nominate candidates for an elective office, and a tie vote thereby occurs, the casting vote cast by the Chair of the meeting shall choose between any tied candidates with the candidate ranking lowest being eliminated for that stage.

Direct Nomination

17.29 Notwithstanding any other provision in these Rules, the Party may issue direct nominations to candidates. Where direct nomination is the method to be applied, the NEB shall carry out a due diligence exercise to justify the use of this method. The due diligence exercise shall take into consideration any of the following:

- a) That there is consensus by candidates as set out above;
- b) Credible research has been carried out in regards to the relevant electoral area through a scientific survey conducted by a competent entity, to provide an evidence-based opinion that a particular candidate is best placed to deliver the relevant electoral seat for the Party.
- c) There is a confirmation that the aspirant is the only qualified candidate for the position that is the subject of the electoral exercise or stands elected.
- d) That such a direct nomination shall aid the Party to comply with the provisions of Article 81(b) of the Constitution of Kenya, 2010 as to gender thresholds provided that the candidate under consideration is qualified and capable of delivering the seat for the party.
- e) That the party leadership has for compelling reasons recommended that it is in the best interest of the party to issue direct party nomination to certain candidates.

17.30 In the application of the direct nomination method, the Party may also consider the views other representatives of the electorate from the applicable electoral area including but not limited to community opinion leaders; party members from the electoral area including women, youth and persons with disability; religious and cultural leaders; and;

- 17.31 Where a candidate and or his or her supporters disrupt the party primaries through the use of violence, intimidation and other means that make it impossible for the conduct of a free and fair exercise, the NEB shall have the authority to give a direct nomination to any of the other opponents if the time left, or the resource factor does not permit the repeat of the exercise in a credible manner.
- 17.32 The Party Supreme Advisory Committee shall meet to consider and approve the list of persons to be given direct party nomination certificates after consideration of the report that shall have been compiled by the NEB in line with the provisions of the sub-rules on direct nominations.
- 17.33 Where the Party issues a direct nomination to a candidate, the other candidates who had applied for that position shall be refunded the application fees paid.

Computer-Enabled Vote Tabulating System

- 17.34 Where circumstances demand, the NEB may opt to conduct a vote for an election through a computer-enabled method which means the NEB shall provide every polling centre with a suitable electronic gadget containing the requisite capability to support computer-enabled voting.
- 17.35 The voters shall, where applicable and subject to availability of a vote tabulating unit, cast their ballots using the portable scanning machine. This vote tabulator reads and records how the ballot is marked, deposits it into the ballot box, stores the information and produces election results after the close of the voting place. The unit is a portable ballot scan vote tabulator and sits on top of a specially designed ballot box.
- 17.36 The vote tabulating system uses one composite ballot on which is printed the candidates' names for any of the party or elective offices.
- 17.37 The voter shall use a special marking pen to fill in the blanks next to the candidate of their choice then the ballot is inserted into the vote tabulating unit by the Scrutineer in charge of the unit. The vote tabulator reads and stores the information in the unit.
- 17.38 The Presiding Officer and the polling clerks at the Polling stations shall facilitate computer-enabled voting by the voters in the electoral area.
- 17.39 At the close of voting on election day, the vote tabulator will print cumulative totals of all votes cast and the totals will be uploaded to a central server by the Returning Officer. The Presiding Officer shall declare the polling closed and proceed to announce the results as generated by every gadget used for polling at the Polling station; which the Presiding Officer shall then cause to be aggregated to determine the cumulative vote results for the entire Polling Station.
- 17.40 The final election results are produced by the vote tabulator unit, then the Presiding Officer shall declare the aggregated, cumulative results, in the presence of the candidates and /or their agents, where either is present.
- 17.41 The Presiding Officer shall transfer the results of the voting into the applicable physical forms for the results on every gadget used for voting and for the polling station as a whole, in the presence of the agents, who shall sign these forms.
- 17.42 The Presiding Officer shall transmit the Results to the Tallying Centre, using the gadget that is network-enabled. He/she shall also take photographic evidence of the signed physical forms and send the information to the returning officer and to the NEB results centre.
- 17.43 The Presiding officer shall physically deliver the signed used voters registers in sealed and marked envelopes; the signed electronic gadget and results forms and the gadgets used voting.

Universal Suffrage

- 17.44 Universal suffrage of registered party members (certified by the Registrar of Political Parties) shall be employed as the method of last resort in the election of Party candidates under these Rules.
- 17.45 It is hereby provided that where an election shall be held under the universal suffrage method the NEB shall determine the mode to be used having due regard to the number of registered party members (certified by the Registrar of Political Parties) as registered voters in the assigned polling station.
- 17.46 A Branch Executive proposing universal suffrage as its candidate selection process, shall decide to do so by notifying the NEB no less than one month before the opening of primaries and abide by any reasonable directives given by National Executive Council.
- 17.47 Where the NEB has determined that an election will be held for a specific electoral area by way of a vote by universal suffrage of registered party members, any of the following methods may be applied:
- a) Through a division where voters are separated into different clusters on the basis of the candidate they support (which may include queuing in support of the preferred candidates);
 - b) A vote is carried out by show of hands or Ranked Preferential Ballot in support of the preferred candidate;
 - c) A vote is carried out by secret ballot:
 - i. Through the manually-cast ballot voting system;
 - ii. Through a computer-enabled voting system.
- 17.48 The provisions on voting by universal suffrage of registered party members (certified by the Registrar of Political Parties) at the polling station shall be applied under delegates system with the necessary adjustments to elections including the following:
- a) The Polling station(s) for the nomination and voting by universal suffrage shall be at the Wards and as determined by the NEB.
 - b) The counting/tallying of votes shall be done at the polling and tallying stations.
 - c) The results for elections for candidates for the county assembly shall be declared at the polling stations or branch tallying centre and a certificate issued to the winners after such declaration.
 - d) The results for the positions of Member of the National Assembly, County Woman Representative to the National Assembly, Member of the Senate and Governor shall be declared after the tallying of their respective polling stations' results at the tallying centre.
 - e) All the results of the polling station shall be digitally transmitted to NEB by the Ward or Branch or County Returning Officer who shall take a photograph of the results declaration form and share the photographic images of the results as reflected and signed by the Presiding Office, candidates and/or their agents.

Election of Presidential Candidate

- 17.49 Further to Article 9.22 (e) of the Party Constitution, the incumbent party leader shall automatically be deemed nominated for the position of president or be re-elected as the president or any other elected position without forfeiting their role as the leader of the party. The Party Leader shall be endorsed at the National Delegates Convention (NDC) as the Party's presidential candidate.
- 17.50 Without prejudice to the above provision, Article 9.20 (j) of the party constitution, all delegates of the party at the National Delegates Convention shall nominate or elect separately the Presidential Candidate and the Deputy President.

- 17.51 The National Delegates Convention (NDC) shall be duly convened as prescribed under Article 23.8 of the Party Constitution and constitute not more than 3,000 delegates.
- 17.52 The delegates present shall convert into a National Electoral College and participate in the elections to endorse the Party Presidential Candidate.
- 17.53 Where the Party Leader is to be endorsed by the NDC as the Party's presidential candidate, the following procedure shall apply:
- a) A plenary of delegates who are eligible to vote at the NDC shall be convened by the relevant officials in consultation with the NEB for purposes of carrying out the election.
 - b) The Chairperson of the NEB, after confirming that the candidate has complied with the eligibility requirements under the applicable laws and these Rules, shall call out the Party Leader's name.
 - c) The Chairperson of the NEB after calling out the Party Leader's name, shall invite a proposer and seconder, to so propose and second the Party Leader.
 - d) The Chairperson of the NEB shall call on the delegates in the plenary to audibly endorse their approval or non-approval of a candidate.
 - e) The Party Leader duly endorsed by the delegates shall be deemed duly nominated as the Party's presidential candidate and the Chairperson of the National Elections Board shall promptly issue the Party Leader with a Certificate of Nomination in the prescribed form.
- 17.54 Subject to these Rules, where there is a vacancy in the office of the Party Leader or the Party Leader does not wish to present his or her candidature for election to the office of President the NDC shall, acting as a National Electoral College, elect a person to be the Party's presidential candidate from among suitably qualified candidates to be the Party's candidate for office of President. This follows a rigorous exercise of receiving proposals to fill in these positions from Regional Representative Council and the County Associations or any other Party organ and Committee;
- 17.55 Subject to this rule, the Party's Presidential candidate may be selected by the consensus of the party presidential aspirants and affirmed through a vote by acclamation of the delegates at the NDC.
- 17.56 Election of the Party Presidential candidate by acclamation shall be conducted by plenary affirmation or rejection of a proposed nominee by the acclamation of 'Aye' or 'Nay' by the delegates eligible to participate in the election and present in the plenary meeting convened for this purpose. The process shall be as provided below:
- a) A plenary of delegates who are eligible to vote at the Convention shall be convened by the relevant officials in consultation with the NEB for purposes of carrying out the election or nomination.
 - b) The Chairperson of the NEB at the plenary shall call out for the name of any candidate for the position of Presidential candidate.
 - c) The Chairperson of the NEB, after confirming that the candidate has complied with the eligibility requirements under these Rules, shall call out the candidate's name.
 - d) The Chairperson of the NEB after calling out the candidates' names, shall invite the proposer and seconder of each candidate, to so propose and second each of the candidates.
 - e) The Chairperson of the National Elections Board shall call on the delegates in the plenary to audibly acclaim their approval or non-approval of a candidate by saying 'Aye' or 'Nay', as the case may be.
 - f) A candidate shall be deemed to have been duly elected if the 'Ayes' exceed the 'Nays'; or to have been rejected if the 'Nays' exceed the 'Ayes'.

- g) The Chairperson of the National Elections Board shall promptly issue the elected candidate with a Certificate of Nomination in the prescribed form

17.57 It is further provided that where there is no consensus in the choice of a candidate or by acclamation, the election of the Party Presidential candidate shall be by the vote of the delegates at the NDC conducted as prescribed below:

- a) The NDC shall elect the Party's Presidential Candidate from among the candidates who present applications for such election. The election shall be conducted by the NEB.
- b) For purposes of the Party Presidential candidate elections, the Chairperson of the National Elections Board shall be the Returning Officer.
- c) The National Elections Board shall co-opt such other members to support NEB in the effective conduct of the Presidential Election.
- d) Voting for elections under this Rule may be carried out through different methods including: a show of hands of the delegates in support of a candidate; a computer-enabled voting system, a requirement that delegates in support of the candidate rise up to be counted; or through a division where delegates will be separated into different clusters on the basis of the candidate they support.
- e) A delegate's identity will be determined before he or she is admitted into the NDC through the production of a national identity card or a passport; and verification of his or her reflection as a registered members of the Party and that his or her name appears in the Party delegate's register
- f) A Presidential election primary shall be determined by a majority of valid votes by the eligible voters. The Returning Officer and the electoral officers of the day shall count, in the presence of the agents of each candidate, the number of people who are clustered in a particular division for a candidate; or the number of hands raised in support of a particular candidate as the case shall be.
- g) The Returning Officer shall publicly declare the final results and promptly issue the Nomination Certificate to the candidate with the highest number of votes.
- h) In the event of a tie among the top candidates, the NEB shall hold a fresh Party primary at a date to be set by the National Delegates Convention and the candidates in that Party primary shall be only the tied candidates who garnered the highest number of votes.

RULE 18 – PROCEDURES FOR VOTING, AND ISSUANCE OF CERTIFICATES TO CANDIDATES

16.1 At any Sub-branch, Branch, County and National Delegates Convention, convened for the purpose of holding elections for National Officials or elective positions as the case may be, the Director, Nominations and Candidate Elections, NEB and the election officials shall:

- a) Ensure that the venue for the elections is laid out in accordance with the method of vetting and voting to be used, the positions to be filled;
- b) Ensure that all the documents and material required for elections are available;
- c) Ensure that all delegates have a valid party membership card, national identify card or valid passport and the voter's card;
- d) Ensure that there is a quorum and only delegates in the certified list of delegates are present and participate in the elections;
- e) Confirm that all the candidates presenting themselves for nomination or elections have participated in all the levels of candidate identifications and interviews process and prior to voting;
- f) Arrange for security at the venue to ensure there's a conducive atmosphere for the free and fair elections

- g) Ensure the elections are devoid of violence, briber or other forms of inducements and undue influence or pressure;
 - h) Post the list of candidates alongside the positions they are vying for at the election venue and bring the same to the attention of the delegates.
 - i) Accredited media representatives within to cover the elections;
 - j) Have all other requirements necessary to complete the nominations and elections process as provided herein.
- 16.2 All eligible registered Kenyan citizens with the necessary documents shall be allowed to cast their votes in their respective polling stations.
- 16.3 No person shall vote in a sub-branch or branch or county other than that in respect of which he or she is registered as a voter and his or her name appears in the register of Party members.
- 16.4 No person shall be allowed to vote more than once.

Preparation of Polling Day

- 16.5 After the conclusion of all presentations by the candidates during the vetting and interviews to ascertain suitability, the ballot papers shall be issued to delegates for voting process to begin.
- 16.6 The NEB shall, after determining the best way to design the party primary logistics for efficiency, security of the process and the safety of the participants, and cost effectiveness:
- a) appoint a place or places at which the polling station/s for each electoral area shall be established; and
 - b) publish in the Party's NEB website a notice specifying-
 - i. the polling stations established for each branch;
 - ii. the place or places appointed for the establishment of a polling station/s for each electoral area.
- 16.7 At any Branch, the Nominations and Elections Board may determine the number and location of any polling stations for the purposes of elections and nominations in the branch; PROVIDED that there shall be at least one polling station in each sub-branch or ward as the case may be.
- 16.8 The NEB shall have regard to geographical considerations, accessibility for persons with special needs, (including persons with disabilities), population and any other factors affecting communication between places within the electoral area.
- 16.9 The Nominations and Elections Board shall provide and adequately publicize the following information:
- a) Names and numbers of nomination polling stations and polling streams;
 - b) Dates and hours of the vetting and confirmation of nominations;
 - c) Dates and hours of the polls, counting and issuance of certificates;
- 16.10 The information above shall be determined and published twenty-one days before the Candidates Selection Day (Interviews and Voting).
- 16.11 Only the following people may be admitted into a polling centre:
- a) Registered Party members for the Polling Station;
 - b) A Nominated Candidate for the electoral area including that Polling Station;
 - c) A person nominated as a deputy to the candidate, where applicable;
 - d) Member of NEC is present;
 - e) The authorised Party officials;
 - f) All authorised agents (not more than one agent for each candidate);

- g) Members of the NEB, Selection Committee and election officers on duty;
- h) Security officer including the police, or any other authorized security personnel;
- i) Persons necessarily assisting or supporting voters with special needs or assisted voter; and
- j) Observers and representatives of the print and electronic media accredited by the NEB.

16.12 The Presiding officer shall provide each polling centre with-

- a) hard copy of the Party Register of Voters for that polling centre;
- b) an electronic gadget where voting will be done using a computer-enabled voting system;
- c) the forms to be signed by the agents of candidates and polling centre officers; and
- d) such other materials for the better carrying out of polling.

16.13 The absence of agents shall not invalidate the proceedings at a polling centre.

16.14 No person shall be admitted into a polling centre if that person is wearing a badge or has any dressing, signifying symbols or other indication of support for a candidate in the primaries.

Postponement of Polling

16.15 The Presiding Officer may in consultation with the Nominations and Elections Board, postpone the election for such period as it may consider necessary where -

- a) there is a reason to believe that a serious breach of peace is likely to occur if the election is held on that date; and
- b) it is impossible to conduct the elections as a result of a natural disaster or other emergencies.

16.16 Where an election is postponed, the election shall be held at the earliest practicable time.

16.17 Notwithstanding the provisions of this rule, the NEB may declare the results if satisfied that the result of the elections will not be affected by the votes yet to be received and tallied from the affected polling centres.

Adjournment of poll to another day

16.18 The presiding officer may, after consultation with the NEB and the Returning Officer, adjourn the proceedings at his or her polling centre where they are interrupted by a riot, violence, natural disaster or other occurrence, shortage of equipment or other materials or other administrative difficulty, but where the presiding officer does so, the presiding officer shall re-start the proceedings at the earliest practicable moment.

16.19 The discretionary powers of a presiding officer shall include a power in the circumstances therein mentioned to transfer the proceedings to another polling centre or public facility in the same constituency after consultations with NEB, and where presiding officer does so -

- a) the presiding officer shall publicize the fact in such manner as is sufficient to bring it to the notice of voters; and
- b) the electoral area for the polling centre from which the proceedings are transferred shall, for all the purposes of these Rules, be deemed to be part of the electoral area of the polling centre to which the proceedings are transferred.

16.20 A presiding officer shall, in consultation with the NEB and the returning officer extend the hours of polling at the polling centre where polling has been interrupted under this Rule or for other valid cause and where polling in that polling centre has started late, extend the hours of polling by the amount of time which was lost in so starting late.

- 16.21 Where hours of polling have been extended as contemplated under sub-rule (18.19), the presiding officer shall give a detailed report on the clear facts justifying such extension of hours.
- 16.22 On the adjournment of the poll in a polling station, to another day, or on the close of the poll at one station with a view to transferring a ballot box to another station, and at any other time, a ballot box is not in use of the purpose of receiving ballot papers, the Presiding Officer shall close up the aperture used for the insertion of ballot papers in to the box and place his seal on it in such a manner as to prevent the insertion of ballot papers without breaking the seal.
- 16.23 The Elections Board shall provide for branch wherein such primary stands adjourned, ballots of the same form and description to be used in the primary on such adjourned day and conducted in the same manner as on the first day, except that the votes shall be cast for such office only and may only be cast for a candidate who received such a tie number of votes in the primary on the first day;
- 16.24 The Returning Officer shall be furnished with an accurate list of all candidates to be voted for at such adjourned primary.
- 16.25 The Elections Board shall, at least three days prior to the day of such adjourned primary, give notice of the day, hours, place and purpose thereof by publishing such notice in the Party Spectrum, newspaper advertisements, the E-newsletter, and other approved publications for general circulation;
- 16.26 No such primary shall be held, if prior to such primary all but one of the candidates for such office die, withdraw their names or for any reason become disqualified to hold such office, and, in such event, the remaining candidate shall be deemed to be lawfully voted upon as the party-endorsed candidate for such office.

RULE 19 - GENERAL ELECTIONS AND CAMPAIGN PRINCIPLES

- 19.1 The Nominations and Elections Board shall give a period of not more than ninety (90) days to all respective candidates to campaign for the various positions vied for before the candidate selections day or as provided for by the IEBC before the general elections.
- 19.2 The Nominations and Elections Board shall determine from time to time the period during which candidates shall be permitted to campaign. No campaigns shall be permitted 48 hours before polling day and on the polling day.
- 19.3 For the purpose of conducting campaigns during elections, the regulations herein should direct the members, officials and candidates on their obligations during any of the campaign period.
- 19.4 The party undertake to acknowledge the authority of the Independent Electoral & Boundaries Commission in regard to the exercise of its statutory' and constitutional power to promote and facilitate the commission's mandate in so far as campaigns and elections are concern.
- 19.5 Until the final party primaries, nominees shall not, without the express prior written approval of the Elections Board, undertake any form of publicity or publication, including any comments to the media, or on any social media, or participate in any public meeting (other than in any official capacity that exists otherwise than as a candidate), or attend and address any meeting of the Party members.
- 19.6 Persons who become candidates on the list are required to comply strictly with the party rules and the restraint above shall equally apply them.
- 19.7 If a candidate is considered by the Branch Executive or the National Executive Council to have breached these provisions as to act in a manner that is prejudicial to the interests of the Party, the candidate shall be warned to comply with the rule and any further breach of that may be notified to the Nominations and Elections Board for necessary actions to be taken in accordance to these rules and the constitution.

- 19.8 Where any nominee for the Party List, fails to, in the opinion of the National Executive Council, comply with the provisions of these rules the Elections Board may review such Candidate's position.
- 19.9 A candidate to whom Rule 19.7 above is applied, shall be invited to attend a meeting set up by the Elections Board prior to a motion being put for a change of position or deletion from a position on the Party List. The candidate must be informed of the reasons for dissatisfaction with his or her behaviour, and given an opportunity to state his or her case.
- 19.10 The decision of the National Executive Council in consultation with the Nominations and Elections Board shall be final and binding and no reasons shall be required to be given.

Campaign Related Guidelines

- 19.11 During campaigning, all our candidates and election officials shall adhere to existing electoral and civil laws as well as the provisions of the National and the Party Constitution.
- 19.12 Besides existing laws, the party, its members, party officials, all candidates vying on the party ticket, agents, party workers and supporters shall; -
- a) adhere to the public order requirements by coordinating their campaign activities such that no two Political Parties shall hold public meetings or rallies in the same locality on the same day if such meetings or rallies are likely to be so close to each other that a possibility of creating conflict arises;
 - b) avoid all activities constituting to electoral offences such as offering gifts and gratification or inducing other persons to stand or not to stand as candidates, to withdraw or not to withdraw their candidature, buying voter identity cards from voters and generally bribing of voters;
 - c) not obstruct, disrupt, break- up or cause to be broken up meetings or rallies organized by other Political Parties and candidates;
 - d) not interrupt or prevent speeches and the distribution of handbills or leaflets, and the posting of posters by other Parties' and candidate;
 - e) in the course of campaigning avoid destroying, removing, defacing or in any way tampering with paraphernalia of other parties or candidates, plagiarizing the symbols, slogan, logos, handbills and other publicity materials of other parties and candidates for legal or illegal activities;
 - f) refrain from impeding the rights of access of other political parties and candidates for purposes of voter education, fund-raising, canvassing, and campaigning;
 - g) refrain from publishing offensive literature and campaign material and may express divergent opinions in a peaceful and persuasive manner;
 - h) be non-offensive and, in this regard, to erect non-offensive banners, placards advertisement and notices and to promote campaigns by lawful means only;
 - i) desist from the carrying of arms and offensive weapons and the display of same, and shall extend co-operation to the law enforcement agencies, particularly for the purpose of recovery of illegal arms;
 - j) not take any extra-legal initiative for the release of any person arrested for offensive weapons during campaigns and elections and on no account should any Party or Candidate initiate such extra-legal measures for the release of such persons from lawful custody;
 - k) refrain from incitement to hatred on the basis of gender, ethnicity, religion, creed or sect or any other criteria, personal attacks and acts of violence either directly by themselves, through leaders, assigns, members, representatives, agents and privies or by proxies;
 - l) desist from the use of abusive or inflammatory language or incitement, heightening of ethnic and other tensions;

- m) refrain from holding public meetings within 48 hours to the polls and from canvassing within the precincts of polling stations on polling day;
 - n) continue to scrupulously observe all laws and rules so long as they continue to apply outside election and campaign periods;
 - o) be sufficiently trained for registration and other party activities and exercises;
 - p) ensure fairness in party activities, moderating such activities in a manner that minimizes tension and avoids misrepresentation;
 - q) in collaboration with the police meet in a cordial manner to resolve issues without resorting to violence, where dates, venues and timing for any of the above activities clash; and
 - r) ensure a level playing field and equality of opportunities for all Political Parties at all times outside elections and campaigns;
- 19.13 No member, supporter or person may use or be permitted to use any intellectual property, patents, trademarks, logos, slogans, technical processes, databases owned and held by the Party without first obtaining the prior written approval of the National Executive Council.
- 19.14 The "Party Rights Agreement" shall be included with the forms prescribed for the nomination and selection of every party candidate. This Agreement shall:
- a) deal with the protection of the intellectual property held by the Party; in its name, symbols, emblem, flag, colours, instructions and procedures and generally its experience as a political party, when used by a candidate for campaign and election;
 - b) represent an enforceable contract involving responsibilities to be observed by the candidate. These contractual commitments together with the code of conduct shall be for all members to observe the Party Constitution and Rules.
- 19.15 In respect of nominations and elections, any persons who is a member of the party and desires to occupy any party position shall be disqualified if;
- a) Without authority he makes, prepares, prints or is in possession of a document or paper purporting to be a register of Party members;
 - b) Knowingly makes any false statement on, or in connection with any application to be registered as a nominee;
 - c) He/she undertakes or promises to reward a voter to refrain from voting, gives, causes to be given to a voter, pays or undertakes or promises to pay wholly or in part to or for any voter, expenses for giving or providing any food, drinks refreshment or provision of any money, ticket or other means or device to enable the procurement of any food, drink or refreshment; or
 - d) After an election, gives, provides or pays any expense wholly or in part to or for any particular voter or any other voter for having voted or refrained from voting as aforesaid;
 - e) Directly or indirectly, lends or agrees to lend, or offers, promises or promises to procure or to endeavour to procure any money or valuable consideration to or for any voter, or to or for any person on behalf of any voter or to or for any other person in order to induce any voter -
 - i. To vote or refrain from voting for a particular candidate;
 - ii. To attend or participate in or refrain from attending or participating in any meeting of a candidate, march, demonstration or in some other manner lending support to or for a candidate;
 - iii. Corruptly does any such act on account of such voter having voted for or refrained from voting;

- iv. In any manner unlawfully influences the result of an election or nomination;
 - f) Directly or indirectly, makes any gift, loan, offer, promise, procurement, or agreement to any election official or voter to -
 - i. Procure the election or nomination of any person; or
 - ii. Procure the vote of any voter at any election or nomination;
 - g) Advances, pays or causes to be paid any money to, or to the use of any other person with the intent that such money or any part thereof shall be used in bribery at any election, or who knowingly pays or causes to be paid any money to any person in discharge or repayment of any money wholly or in part used in bribery at any election or nomination;
- 19.16 Any delegate may be disqualified by the Nominations and Elections Board from taking part in the nominations and election of any candidate if:
- a) He/she induces, influences or procures any other person to vote in an election knowing that the person is not entitled to vote in that election;
 - b) He/she accepts or takes any food, drink, refreshment, provision, any money or ticket, or adopts other means or devices to enable the procuring of food, drink refreshment or provision knowing that it is intended to influence them shall be disqualified to vote in the Party's nomination;
 - c) He/she directly or indirectly in person or through another person on his behalf uses or threatens to use any force, intimidation, promote political violence including sexual violence, restraint, or material, physical or spiritual injury, threatens to inflict injury, damage, harm or loss harmful cultural practices, damage or loss, or any fraudulent device, trick or deception for the purpose of or on account of -
 - i. Inducing or compelling a person to vote or not to vote for a particular candidate at an election for nomination;
 - ii. Impeding or preventing the free exercise of the franchise of a voter;
 - iii. Inducing or compelling a person to refrain from becoming a candidate or to withdraw if he has become a candidate; or
 - iv. Impeding or preventing a person from being nominated as a candidate or from being registered as a voter.
 - d) He/she bribe party officials prior to and during the party nominations and elections;
 - e) He/she make public utterances and machinations that may arouse racial, ethnic, religious or gender animosities amongst the party member;
 - f) He/she misappropriate party funds and misusing party facilities;
 - g) He/she pledge or show allegiance to another political party without the party's consent;
 - h) He/she disregard or undermine party policy decisions including the election and nomination rules and procedures;
 - i) He/she engage in any conduct with respect to elections, which would invite disciplinary proceedings under the Constitution of the party.

Election Related Guidelines

- 19.17 During elections, whether general election or a by-election, in which our party is participating, the party shall jointly with other political parties: -
- a) Work to safeguard the integrity of the electoral process and shall ensure absolute transparency and honesty before, during, and after polling day transactions;

- b) Co-operate with election officials for the efficient, transparent and uninterrupted administration of elections;
- a) Extend full co-operation educate election officials in the performance of their legal duties in order to ensure peaceful and orderly polling;
- b) Observe rules and regulations restricting the number of individuals with access to the polling station on polling day;
- c) Refrain or refuse to engage in confrontation or open arguments with election officials at the polling stations;
- d) Either route any complaint, protest or challenge relating to processes and procedures at a polling station through the party agent(s) to the presiding officer or the security officer for resolution. Thereafter an aggrieved party or person is at liberty to seek redress in the law courts of the state.
- e) Actively discourage members and supporters from engaging in multiple voting and other forms of cheating such as voting in the name of deceased and absent voters as well as minors and other unqualified persons;
- f) Recognize and acknowledge the rights of accredited observers and monitors and other accredited persons for the purpose of entering a polling station or area and observing the conduct of elections;
- g) Recognize that the use of thugs, terrorizes the voters and creates tension and an atmosphere of intimidation on polling day. Consequently, all political parties shall always refrain from the recruitment and deployment of such individuals on polling day and all times;
- h) Together with the IEBC, create on polling day an atmosphere that is conducive to free and fair voting;
- i) Refrain from coating, threatening and intimidating other political parties and candidates so as to prevent them from carrying out their lawful activities at the polling station;
- j) Refrain from fraudulently procuring results and votes by invasion occupation of polling centres and any other lawful means.
- k) Instruct the party agents in attendance at polling stations to perform their duties in accordance with the electoral laws and regulations.

RULE 20 – INTERNAL DISPUTE RESOLUTION AND APPEALS

- 20.1 In further pursuant to the Provisions of Chapter 10 (Article 28) of the Party Constitution on Dispute resolution and Disciplinary mechanisms, these Nominations and Elections Rules and Procedures and any other state laws, shall prescribe the manner in which any dispute as to the endorsement of a candidate for party or elective office or for appointment of committee member (s), including conflicting claims to such endorsement or selection, shall be resolved.
- 20.2 As a way to amicably resolve disputes between members of the party, the members and the party, organs of the party or among party officials, there shall be established an internal disputes resolution mechanism.
- 20.3 The Internal Dispute resolution shall be in accordance to the Kenyan constitutional right to fair hearing and fair administration of justice. There shall be three (3) levels of internal dispute resolution. Those are Sub Branch, Branch and National. Decisions at the sub branch shall be appealed against at the branch, those of the branch at the National whereas those at the National level; shall be final.
- 20.4 Procedure for various levels of complaints and disputes:

- a) Complaints against nominations and election of Governor(s), MP(s), Senator(s) and National official(s) shall be held and determined at National Executive Council; the complaints against nominations of County Assembly Representative(s) and branch official(s) shall be heard and determined at Branch Executive Committee under the supervision of the NEC and NEB and the complaints against sub-branch, ward and polling station officials shall be heard and determined at Sub-branch Executive Council under supervision of NEB. Once the complaint has been received by SBEC, BEC or NEC; they shall be under duty to inform the NEB and NEC and the accused.
- b) Within 7 days, the party through the Secretary General or Secretary to the branch or secretary to the sub-branch (as case may apply) constitute a dispute resolution committee instead of disciplinary committee to attempt to resolve the dispute.
- c) If the complaint is not received within 7 days or if within the 7 days, no resolution has been reached at the dispute resolution mechanism level, the Secretary General or Secretary to the branch or secretary to the sub-branch shall constitute the disciplinary committee under the direction of the Nationale Executive Committee which shall consist not more than 5 members or the matter shall be referred to the Disciplinary and Proceedings Committee for necessary action. However, the dispute resolution mechanism provided may extend for another 7 days where necessary by motion of the committee or upon request of the parties and approved by NEC. The reason(s) for such extension shall be communicated in writing to all parties concerned.
- d) Any member may, at any time and without prejudice to any other dispute resolution mechanism provided in sub-rule 20.4 (c), may attempt at the first instance, seek and settle any complaint or dispute through negotiation, or thereafter any other alternative justice processes including arbitration, mediation, conciliation, reconciliation, and traditional dispute resolution mechanisms as provided for under Article 28.5 of the party constitution;

Disciplinary and Election Appeals Tribunal

- 20.5 There shall be established a Disciplinary and Election Appeals Tribunal (hereinafter referred to as the "Panel" or "tribunal" or the DEAT), composed of not less than three (3) and not more than nine (9) members including a chairperson, a deputy chairperson and a secretary. The Executive Director shall be an ex-officio member.
- 20.6 The panel shall be set up to deal with disputes arising out of the nomination and election process and shall stand dissolved upon conclusion of the nomination process and the period of service which shall be determined by the NEB. The Disciplinary and Election Appeals Tribunal shall have the power to receive, hear and determine all cases or disputes and any matters pertaining to party nominations and elections.
- 20.7 All members shall form a quorum unless otherwise validly specified by the NEB.
- 20.8 The Members of the DEAT shall be recommended by NEB and approved by the National Executive Council from among persons who:
 - a) Is a citizen of Kenya of aged eighteen (18) years and above;
 - b) does not holding any other office in the party;
 - c) is an Advocate of the High Court of Kenya of not less than five years standing;
 - d) has any other qualification relevant to election management and deemed by the party as necessary for one to be a member;
 - e) is distinguished member of the Party with good moral standing in society; and
 - f) satisfies the requirements relating to Leadership and Integrity.
 - g)

- 20.9 The members of the DEAT shall be appointed by the Party Leader on the recommendations of the NEC.
- 20.10 The Elections Board shall, at the time of appointment, designate one member of the panel as the Presiding Chairperson and the members shall elect one of their members as a deputy who shall be of the opposite gender to the chairperson and one to be a secretary.
- 20.11 The chairperson of the NEAB shall be a person qualified to hold the office of a Judge of the High Court of Kenya.
- 20.12 A person shall be qualified to be appointed as a chairperson and member of the DEAT if the person is
- a) Fully paid-up member of the Party
 - b) experienced in dispute resolution;
 - c) Eligible to vote at an election;
 - d) Not been convicted of an election offence;
 - e) Satisfies the requirements of Chapter Six of the Constitution on leadership and integrity.
- 20.13 In constituting the membership of the DEAT, the NEC and party leader shall take into considerations Individuals from different ethnic groups and special interest groups and not more than two-third (2/3) of members of DEAT shall be of the same gender.
- 20.14 No member of the National Executive Council or Disciplinary and Proceedings Committee may be a member of the Panel.
- 20.15 The DEAT shall formulate its rules of procedures that the NEC will approve.
- 20.16 A member of the DEAT shall serve for such period as shall be determined by the NEC and shall be eligible for reappointment provided that a member shall not serve for more than two (2) terms of four (4) years consecutively.
- 20.17 No member of the Tribunal shall, during his or her tenure of office, be an aspirant in any party election or nomination.
- 20.18 A member of DEAT shall only be removed from office on the following grounds;
- a) Resignation
 - b) Violation the Party Constitution, Nomination Rules or the Code of Conduct
 - c) Declaration of an interest in a particular nomination, elective position or party organ
 - d) Becoming mentally incapacitated
 - e) Is declared bankrupt
 - f) Convicted of an election offence or criminal offence that carries a sentence of at least six months with no fine or the court finds that the person has violated provisions of chapter six of the Constitution of Kenya, 2010
 - g) Death.
- 20.19 A vacancy in the office of any of the Disciplinary and Election Appeals Tribunal official will be advertised and the advertisement will specify required qualifications. The advertisement, vetting and replacement of the new member of the Board will be within a period of 14 days.
- 20.20 The DEAT shall hear and determine disputes arising from;
- a) Party elections;
 - b) Party nominations and

c) Party lists for nomination as Member of Parliament or County Assembly.

- 20.21 The panel shall determine appeals arising from party nominations and elections, or arising from endorsement in respect of Candidate Selection Process and, where considered necessary, appeals arising from elections of County and National officials in respect of elections of the Presidential, Governors, Senators, Members of the National Assembly, and County Women Representatives.
- 20.22 Any candidate who is dissatisfied with the outcome in connection with the party elections or vetting and nominations of parliamentary or civic candidates or party elections at all party level has a right as the aggrieved party to personally appeal to the Panel in writing and duly signed by the appellant and forwarded either physically or electronically within 72 hours of the announcement of results or through his duly appointed agent within 72 hours of announcement of the list of party nominees.
- 20.23 The Appellant will on appeal pay a non-refundable fee of Kshs, 5,000/= to the Party for elective offices within the Branch and Sub- Branch and pay a non-refundable fee of Kshs 10,000/= to the Party for County and National Cases or such other fee as the party NEC may determine.
- 20.24 The appeals to the Disciplinary and Election Appeals Tribunal shall be in writing duly signed by the Appellant and be lodged within three (3) days of announcement of the results appealed from.
- 20.25 Any person who considers that her/his name has been wrongly or unfairly omitted from list of nominees or the party list, shall have the right to appeal to the Panel as set herein within 72 hours after the expiry of the inspection period, provided that this deadline may be extended in exceptional circumstances, which shall be specifically documented.
- 20.26 Parties have a right to represent themselves or be represented by legal representatives of their choice before the Disciplinary and Election Appeals Tribunal.
- 20.27 The Disciplinary and Election Appeals Tribunal may, on its own volition and or upon applications to it, consider the matters filed and render its decision thereon
- 20.28 The hearing may be physical or virtual as the parties may elect and as the circumstances of the case may dictate.
- 20.29 Parties may be heard orally in person or the hearing can be a document only hearing.
- 20.30 The Election Board will put in place measures to ensure that parties are heard and that no right to be heard is defeated by reason of distance. Provision may be made for County and Branch hearings as may be appropriate upon such a request being made to the Board.
- 20.31 Parties should have evidence to support his/her allegations such as:
- a) Witnesses,
 - b) Persons arrested in regard to the office,
 - c) Vote counting irregularities e.g. duplications, irregularities, etc,
 - d) Complaints made at the nominations/polling stations to any party agent, county, branch, Nominations and Elections Board or party official county/ application serial
 - e) Photographic/video evidence
- 20.32 The Disciplinary and Election Appeals Tribunal shall, in suitable cases, have powers to Summon the Returning Officer responsible, witnesses or persons with relevant evidence and thereafter dismiss the appeal or grant orders sought including orders for re-count, re-tallying of votes or repeat of the nomination or election exercise.

- 20.33 The Panel shall determine complaints and appeals within fourteen (14) days of receiving the same and which in any case shall not be more than sixty (60) days of the date of the dispute. However, given the nature of the complaint, the requisite panel shall hear and determine the appeal within 72 hours of receipt of the appeal.
- 20.34 Where a dispute has been filed at the Panel (Convened to deal specifically with Elections cases), the Elections Board shall withhold the certificate of return until such time as they are furnished with the verdict of the panel.
- 20.35 The Chairman shall be at liberty to decide on all the enquiries, the procedural matters, whether to refer them to other alternative resolution mechanism.
- 20.36 The DEAT shall accord a fair hearing to all parties appearing before it and give parties equal opportunity to present their cases and or otherwise defend themselves. However, a party that is dissatisfied with the decision of the panel has a right to Appeal to the Political Parties Tribunal.
- 20.37 The DEAT will be independent, neutral and impartial in the determination of its cases and in the execution of its mandate.
- 20.38 Members of the Board must declare conflict of interest relating to matters that they are dealing with. The Secretary to the Board will maintain a conflict of interest register for that purpose. Any matter in which a member is conflicted will be heard in the members absent.
- 20.39 Members of the DEAT shall abide by this Constitution, the Code of Conduct and the party rules.
- 20.40 The Disciplinary and Election Appeals Tribunal shall consider and determine matters filed in accordance with the Constitution of Kenya, any applicable Law, party Constitution and Election and Nomination Rules within Ten (10) days of receipt of the complaints.
- 20.41 The decisions of the Panel will be filed at the Political Parties Disputes Tribunal.
- 20.42 DEAT shall consult with the Secretary General, Party Leader and Director of Elections in their service delivery.

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